

The Racial Geography of U.S. Public Opinion at the Punitive Turn

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Abstract

A large literature considers the mid-century a key turning point in punitive public opinion in the U.S. This article examines racial and geographic heterogeneity in changing public opinion during the mid-century using data on punitiveness from as early as 1953. I find that the punitive turn is characterized by attitude divergence between Black and White people, and that the attitudes of White Southerners grew more punitive than Whites in the non-South from before to after the turn. Structural break tests identify 1967 as the most likely turning point, and identify White people and the South as the dominant sources of racial and regional divergence. Heterogeneity in partisanship and responsiveness to regional violent crime support are consistent with the idea that crime rates themselves were meaningful in punitive attitude formation only insofar as they were mediated by additional political and social political forces.

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The United States is one of the most punitive countries in the world, with minorities—and Black people, in particular—bearing the heaviest burden of state punishment. Consistently undergirding contemporary punitive outcomes have been high levels of public support for punitive policies (Gottschalk, 2006). But the U.S. has not always been such a punitive outlier. Instead, the literature has consistently argued that the mid-century U.S. witnessed a dramatic *punitive turn* in both attitudes and punishment outcomes (Beckett and Francis, 2020).

Race and context—namely, crime and its perception—are theorized to be dominant forces in this punitive turn (Beckett and Francis, 2020). Although there is some debate, most studies identify the root of the punitive turn in a generalized increase in crime that took place in the mid-century (e.g., Klebba (1975)). But accounts differ as to how much this contextual change mattered relative to significant political and social mediating forces; for instance, the media’s portrayal of crime (Enns, 2016); the political gains of Black people igniting racial threat (Eubank and Fresh, 2022); partisan competition spearheading new national policy discussions of law and order (Weaver, 2007; Lopez, 2015); and dissatisfaction with the ability and normative consequence of a robust welfare state to solve crime through redistribution (Flamm, 2005; Clegg and Usmani, 2019). Despite this extant theory, systematic empirical evidence on punitive attitudes and their racial geography through the purported turn has, to date, been missing from the literature.

In this article, I empirically consider the nature of this supposed turn in punitive public opinion using Gallup and General Social Survey (GSS) data spanning 1953-1985. The temporal scope of this polling data is key. A significant challenge in characterizing the punitive turn is the necessity of data that not only captures the period of growing punitiveness, but prior trends as well. While there are numerous frequently-used surveys post-1975 that ask a range of punitive questions, Gallup data offers the only pre-1975 source of nationally-representative individual-level data on punitive attitudes. While later surveys can establish corroborative trends, or cross-sectional relationships, they do not speak directly to the *turn* in attitudes.

With this data, I establish four new sets of empirical facts about the punitive turn. First, I document the punitive attitudinal turn itself. I inductively establish 1967 year as the most

likely inflection point in punitive attitudes with a series of structural break tests. Second, I establish that White respondents became differentially more punitive at this inductively determined turn by ~ 12 percentage points. Although White respondents were already more punitive in the pre-turn period, this post-turn increase represents more than a 50% increase in their average punitiveness.

Third, I identify additional geographic heterogeneity in punitive attitudes. While the South was initially less punitive in the pre-turn period, the region experienced the largest increase in punitive attitudes after the turn—by ~ 7 percentage points—nearly entirely closing the pre-1967 regional difference. Under an alternative set of statistical assumptions, randomization inference indicates that it is extremely unlikely that this post-1967 Southern divergence arose by chance. Furthermore, White punitive attitudes in the South grew more after the punitive turn relative to Black respondents in that region. This difference was driven by changes in White attitudes, as I find no evidence that Black punitive attitudes changed after 1967 in regionally-defined ways. The inclusion of a time-varying control for region-specific crime, and evidence that Black people were far more likely to experience violent crime than White people further suggests that this divergence in punitiveness was not a simple reaction to the well-known phenomenon of rising crime.

Fourth and finally, to better understand the racial and regional patterns, I examine how these patterns relate to partisan identification and regional violent crime trends. I find that amongst White respondents in the South, there is suggestive evidence that partisan identification became increasingly connected to punitive attitudes after the punitive turn and after racial-partisan realignment. Given the dominant role of racial resentment in partisan realignment (Kuziemko and Washington, 2018), I interpret these findings as suggestive—though unfortunately not conclusive—of the critical mediating role of racial resentment in the punitive turn. Finally, by contrast, White respondents were not differentially more likely to respond in their punitive attitudes to regional violent crime relative to Black respondents. Nor were respondents in the South of either race more sensitive to regional violent crime than respondents in other regions.

These findings contribute to the literature by offering important new descriptive characterizations of historical patterns in racial attitudes towards punitiveness often consid-

ered only via cross-sectional correlations and experimental work from contemporary periods (Bobo and Johnson, 2004; Unnever and Cullen, 2010). Extant findings are important, but they only indirectly address questions about the historical evolution of punitiveness. Where the literature on race and punitiveness *has* considered trends in punitive attitudes over time (Stinchcombe et al., 1980; Beckett, 1997; Jacobs and Carmichael, 2002; Ramirez, 2013*b*; Enns, 2016; Duxbury, 2020), my findings contribute by considering trends from before the supposed punitive turn, *and* by examining un-evaluated co-variation in racial and geographic opinion. For example, in the existing literature, the (separate) racial and regional sub-group analysis in Ramirez (2013*b*) begin only in 1972. Moreover, the question asked by Ramirez is distinct. Where Ramirez asks what time-varying factors contribute to different sentiment by race, I ask whether punitiveness amongst respondents of different races underwent a particular structural break in the mid-century (requiring earlier data) and whether that break had distinct geographic heterogeneity. Similarly, Duxbury (2020)’s analysis begins in 1972. Authors that use only the GSS (e.g., Stinchcombe et al. (1980), Anderson, Lytle and Schwadel (2017)) necessarily begin their analysis in 1972. Beckett (1997)’s analysis begins somewhat earlier, 1965, but pairs this with data from only one later year, 1988, which limits the ability to understand more precisely when the punitive turn took place within that intervening period, and to account for trends. Baumgartner, Boef and Boydston (2008) examine responses to questions about punitive attitudes as early as 1952, but the authors’ research questions are distinct and do not focus on racial or geographic variation in the rise of punitiveness.

In summary, existing work does not estimate when the punitiveness of different racial groups changed from the 1950s onwards, nor where those changes were most pronounced, after accounting for other individual-level factors that might account for attitudes. Finally, while aggregate trends can tell us about broad correlations between attitudes on different related topics—e.g., racial attitudes, or welfare attitudes—evaluating multi-part heterogeneity requires a different estimation strategy like the one employed in this paper.

These findings contribute to a continued and still unsettled debate about whether and why crime and race mattered in the punitive turn and the subsequent late 20th century phenomenon of mass incarceration (for recent entries in that debate see Murakawa (2014); Enns (2016); Hinton (2016); Clegg and Usmani (2018, 2019); Norton and Stein (2020);

Beckett and Francis (2020); Clegg and Usmani (2021)). This literature largely asks about the relationship of crime and race to end-line carceral outcomes. This paper, by contrast, does not ask about incarceration itself, but rather addresses one potential *link* in the mass incarceration causal story (see e.g., Enns (2016)): the punitive attitudes of a democratic public. My findings indicate that, insofar as punitive public opinion and incarceration are linked, the explanatory story of incarceration should account for the mediating forces of race and geography, not merely the contextual experience of crime.

These findings are not, it must be noted, a causally identified test of a single causal factor explaining why the punitive turn occurred. It has remained difficult to source variation that meets inferential requirements to make that kind of claim. However, these results nevertheless comprise new descriptive evidence of the important role played by race and geography in that turn. The question answered by this paper is not how punitive opinion grew from the late mid-century—something well-documented in the literature above—but how that trajectory *changed* in the mid-century in racially and geographically-specific ways heretofore undocumented in the literature.

The Making of Punitive Public Opinion

To provide motivation for the empirical contribution and, thus, interpretive context, I situate the relationship between race, geography and punitiveness in extant theory.

Punitive attitudes (or “sentiment” or “mood”) comprise support for a variety of state policies that punish (Ramirez, 2013*b*). Scholars consistently identify race as a key factor in individual punitive attitude formation, with Whites differentially supporting punitive policies (more so when they exhibit racial animus), and holding beliefs consistent with Black people being those to whom punitive policies will be applied (Hurwitz and Peffley, 1997; Bobo and Johnson, 2004; Pollak and Kubrin, 2007; Unnever and Cullen, 2012, 2010; Ramirez, 2021).¹ By contrast, scholars argue that Black attitudes are formed distinct from those

¹This is especially pronounced when considering the death penalty, specifically (Unnever and Cullen, 2007; Unnever, Cullen and Jonson, 2008). The actual application of punishment—e.g., the death penalty (Appendix D)—displays stark racial inequalities. Those racial inequalities have always existed. Yet, as the empirical analysis documents below, the link between race and death penalty support in public opinion has *not* been temporally constant. This suggests that attitudes are not “merely” a reflection of accurate knowledge of punishment.

of White people as a consequence of anxiety about crime, perceptions of criminal justice system bias, and fear that state repression will be directed towards them (Johnson, 2006). As a consequence, these studies find that White people are consistently more punitive than Black people.

Of course, neither the construction nor salience of race are temporally constant. Thus, how people conceive of their own race, and the race to whom punishment will apply are not time-invariant. While the perceived association between race and criminality runs deep in American history (Muhammad, 2011), the mid-20th century also drew new linkages between them, arguably producing a *turn* in punitive attitudes. These linkages were built on a number of foundations. First, scholars argue that they were built on generalized negative White reaction to the social and political gains secured by Black people as a result of the Civil Rights movement (Beckett and Francis, 2020; Eubank and Fresh, 2022). That movement made important incremental gains that ultimately culminated in the 1964 Civil Rights Act and 1965 Voting Rights Act that formally institutionalized—and *de facto* produced—desegregation and voting rights for Black people (Fresh, 2018).

Second, the status threat induced by those gains in the general public provided a rich breeding ground for new forms of racial appeals, something that political entrepreneurs capitalized on in an attempt to secure partisan gain (Blalock, 1967; Weaver, 2007; Duxbury, 2020). To do so, political entrepreneurs, namely on the Right, attacked the social welfare policies of New Deal Liberalism and President Johnson’s Great Society program, casting Black welfare recipients as undeserving of the state’s help (Flamm, 2005). Simultaneously, law and order emerged as a new and powerful national policy dimension; situating itself as an alternative and highly punitive means of social control for a now ascendant minority population (Weaver, 2007; Alexander, 2012). By criticizing welfare support directed *at* minorities, and championing of law and order applied *to* minorities, policy discussions of punishment became increasingly layered with racially-coded language (Mendelberg, 2001; Lopez, 2015). These appeals proved quite successful. Disaffected White voters, particularly in the South, exited the Democratic party, completing a long process of racial-partisan realignment (Kuziemko and Washington, 2018; Schickler, 2016).

The civil disobedience of the Civil Rights movement provided ample fodder to those

who sought to portray Black people as disorderly law breakers, deserving of punishment rather than state support. But the mid-century also saw an increase in generalized crime that provided additional fuel to race-laden discussions of punishment, which I discuss further below. The programs championed by liberals were attacked as benefiting the very people, often minorities, supposedly responsible for rising crime, further coupling attitudes about race and the welfare state in the context of crime (Flamm, 2005; Kellstedt, 2003).² The media in turn developed and enhanced these linkages between race, crime, welfare and punishment (Kellstedt, 2003; Enns, 2016).³ In this way, punishment was not a necessary response to rising crime, but reflected an increasing view that a liberal social welfare solution had decidedly failed (Flamm, 2005).

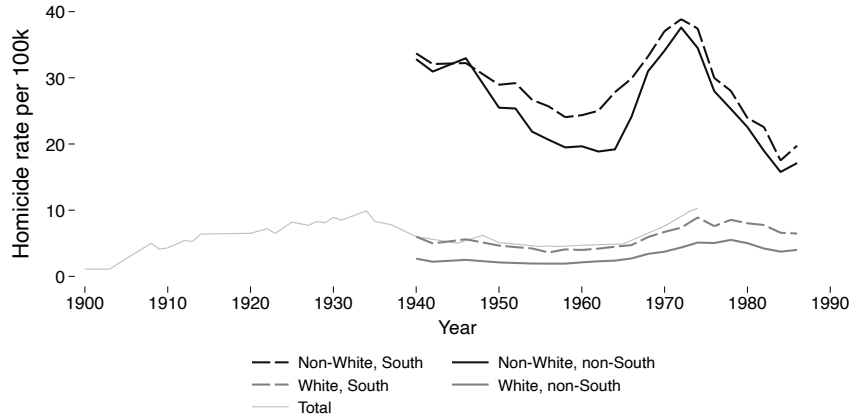
Although these race-laden discussions of punishment were directed primarily at White people, particularly in the South (Mendelberg, 2001; Weaver, 2007; Lopez, 2015; Duxbury, 2020), Black people were not immune from political entrepreneurs heralding law and order. Indeed, controlling crime in Black neighborhoods, where it was highest, was argued by Black contemporaries as essential in order to protect the gains of the Civil Rights movement (Forman, 2017). But Black people may have responded less punitively to law and order rhetoric as a function of legacies of race-based state repression (Johnson, 2006). Moreover, punitive policy is not the only understood remedy to rising crime. Indeed, Black communities frequently asked for crime control *coupled with* social programs to address the root causes of crime, the very programs under attack from the 1960s on (Hinton, Kohler-Hausmann and Weaver, 2016).

Independent from race, scholars consistently identify context, and specifically, crime, as a key factor in punitive attitude formation (Wilson, 1975). Insofar as punishment is viewed as a deterrent, increasing crime may generate a rational demand for policies that punish (e.g., Beckett (1997)’s *democracy-at-work* model). Even if state punishment is not viewed

²Kellstedt finds that this coupling involved a *generalized* increase in support for welfare and racially liberal policies, but does not consider punishment attitudes.

³The authors largely argue that the media developed these linkages. However, as I describe below, assessing which causal factor led others in this multi-dimensional treatment space in which many mechanisms are closely related is exceedingly challenging (e.g., (Beckett, 2020)). That is, whether the media definitively causally *led* other mechanisms, or whether it *enhanced* other processes at work is enormously difficult to ascertain given the available data. The media is not an exogenous actor. While it can certainly innovate, the success of those innovations still depends on its ability to trade in the genuine (if potentially latent) preferences of the viewing public.

Figure 1: Trends in the Homicide Rate by Race and Region, 1900-1986



Source: Total from Klebba (1975), Table 2 and Figure 3, pgs. 197-198; race-regional from volumes of *Vital Statistics of the United States* normalized by decennial census data from NHGIS. See Appendix H.

Notes: The above plot shows homicide rates by the race of the victim per 100,000 of the relevant population. The total trend is age-adjusted. FBI Uniform Crime Report (UCR) trends are presented in Appendix H.

as a deterrent, crime is associated with affective responses—namely, fear and anger—that are also theorized to find their outlet in greater punitiveness, independent of race (Hale, 1996; Frieberg, 2001). This is because punitiveness is a way for society to communicate its disapproval of certain actions (Garland, 2002).

And indeed, crime grew significantly during the mid-century—potentially interacting with race to produce punitive attitudes, as described above—but also potentially exerting its own independent effect. To illustrate the backdrop of crime during the mid-century, Figure 1 presents trends in homicide victimization rates by race and region. Although most studies utilize FBI Uniform Crime Report data (UCR) to measure crime (Appendix H), I also collect homicide victimization rates because they are disaggregated both by race and geography, and available well prior to the punitive turn.⁴ The patterns clearly indicate that non-White people had the highest homicide rate and the largest trend growth from 1960 onwards. From the mid 1970s, homicide rates declined, markedly amongst non-Whites.

It’s worth noting, however, that as important as crime was in the mid-century, scholarship is also clear that the importance of an individual’s *actual* experience of crime is often less important for attitude formation than the media’s portrayal of crime or the individual’s perception of it (Hale, 1996; Enns, 2016; Kleck and Jackson, 2017). Indeed, survey

⁴With any crime statistics, one must be careful with interpretation because the exercise of state control is not a purely technocratic process (Muhammad, 2011; Cleve and Mayes, 2015). The classification of homicides is, however, one of the least likely to be subject to such forces.

respondents consistently overestimate their personal victimization risk, and nearly always think crime is increasing—perceptions that link to attitude formation beyond actual risk and objective trends (Quillian and Pager, 2010; Ramirez, 2013*a*).

The Empirical Expectations

The extant literature indicates that the 1960s and 1970s witnessed a changing context of crime and a dramatic re-organization of race relations and racial associations with crime and punishment in the U.S.: *i*) crime increased, *ii*) Black people made significant civil and voting rights gains, and *iii*) the parties differentiated their policy platforms with respect to two issues linked to crime and race—law and order, and welfare. Together, these factors suggest that punitive attitudes changed during this period, becoming more punitive (H0).

The existing literature also warrants a close examination of the trends in punitive attitudes held by different racial groups in different regions during the mid-century. All else equal, in the case of a pure explanatory story of rising crime, we would expect Black people to increase their punitive attitudes more than White people because of their growing victimization rates (H1). The mechanism underlying this relationship takes punitive attitudes as a simple rational function of the true risk and experience of crime. Importantly, this prediction assumes that a marginal increase in crime has the same effect on punitiveness for any baseline level of crime (i.e., constant elasticity). If it is the case that a change in crime increases punitiveness *more* at low levels of crime, then punitiveness might change *more* amongst White people than Black people because White people’s baseline experience and victimization risk was lower. The logic could be because of (H1a) ceiling effects for Black people—i.e., high crime levels had already produced high punitiveness, with little space to increase—or because (H1b) the same change at low baseline is more meaningful given that it is a larger share of one’s experience of crime (i.e., people respond to growth rates).

Additional factors may have mediated the relationship of crime, however. Despite lower experiences of crime, White people may have received the dog-whistle messages targeted at them linking status threat and undeservingness of welfare to law and order, thus *augmenting* any genuine fear for their safety, and thus increasing their punitiveness.⁵ In this case we

⁵Flamm (2005) claims that “the appeal of law and order was due to genuine fear” (pg. 5). And in doing

would expect the punitive attitudes of White people to increase by more than those of Black people (H2). However, a larger punitive increase for White people relative to Black people might also reflect that, amongst Black people, genuine fear for safety is tempered by concern about the repressive nature of law enforcement (drawing on a history of problematic relations between the state and the Black community). Therefore, a larger mid-century increase in punitiveness amongst White people relative to Black people could reflect one or a combination of two linked processes: (H2a) a differential *augmentation* of White punitiveness, or (H2b) a differential *suppression* of Black punitiveness.⁶ Though I note the existence of these two mechanistic channels, the subsequent empirical analyses cannot separate them.

Regional variation offers one means of better understanding observed changes in punitiveness by race. There are a number of reasons to expect that a change in punitiveness—and specifically, punitiveness by race—may display important regional variation. If differential changes in punitive attitudes by racial groups are related to racial advancements after landmark civil and voting rights legislation, we should expect those changes to be larger in those places where the advancements were more threatening in both status and instrumental terms. This is arguably the South, where the intensity of segregationist and disenfranchising policies—and by virtue, the intensity of integration and enfranchisement that resulted after 1965—were strongest (Key, 1950).⁷ Relatedly, the receptiveness of White populations to law and order dog whistles and to racially-laden welfare criticism may have also been centered in the South where, again, racial hierarchy was more central to political, social and economic life (Weaver, 2007; Kuziemko and Washington, 2018). Differential regional legacies of racial hierarchy may have also depressed the punitiveness of Black people in the South for opposite reasons. Thus, the expectation is for regional location in the South to positively moderate the role of race in the punitive turn (H3).

so argues that this fear effectively trumped “racial prejudice and historical anxieties” amongst White people. The argument that racial prejudice and historical anxieties were activated and increased punitiveness does not negate the fact that genuine fear played a role in punitive attitude formation. However, given that fear should have been higher amongst Black people, for genuine fear to be the *dominant* (or sole) explanation of larger changes in punitiveness for White people relative to Black people *requires* a differential race-specific relationship between crime and punitive attitudes.

⁶Another way of stating this would be that Black and White people are not a counterfactual for one another, instead mid-century changes in crime and politics may have exerted their own effect on each group. Thus, the results are descriptive quantities not estimates of causal effects.

⁷This is not at all to say that racism was a purely Southern phenomenon, only that there were distinct historical legacies that arguably made the experience of the mid-century civil rights changes described above more pronounced in this region.

There are, of course, other features of the South that are unique beyond the social centrality of racial hierarchy. But to account for punitive change differentially experienced in the South, those features must either theoretically link to *activation* as a consequence of changing crime, partisan politics, or civil rights; or *themselves* undergo *change* during the punitive turn.⁸

An alternative geographic prediction is that the Second Great Migration produced a Northern urban under-class, drowning in crime, absent employment prospects and with significant demands on the welfare state (Clegg and Usmani, 2019). In this case, the expectation would be that White people in the North and Mid-West—not the South—would be more likely to respond to crime with punitiveness (H4). Still, although Figure 1 demonstrates that homicide rates were higher in the South for White people, the *change* in these rates was no different between the South and the non-South. Additionally, in the North and Mid-West, Black people experienced the most crime.

Data and Measurement

To understand when, where and amongst which racial groups punitive opinion changed in the mid-century U.S., I collect individual-level data on punitive attitudes from 16 Gallup polls (1953-1985) and 11 GSS polls (1972-1985) comprising repeated cross-sections of ~40,000 individuals.⁹ I restrict the analysis to pre-1985, allowing a long mid-century window to examine the punitive turn, but also limiting the potential contamination from later events, namely the “innocence turn” that other scholars argue emerged from the 1990s (Baumgartner, Boef and Boydstun, 2008; Ramirez, 2013a).¹⁰

The theoretical construct of interest is punitive attitudes. I operationalize this construct

⁸For example, Zimring (2003) argues that Southern punitiveness may also reflect a history of vigilantism—i.e., *taking the law into one’s own hands*. Yet, vigilantism was a feature of the frontier West for as long as the South (Waldrep, 2002). In addition, vigilantism in the South was intricately tied to race—from the pursuit of runaway slaves, to lynching under Jim Crow (Muhammad, 2011). Finally, where punitiveness is defined in terms of *state policies* that punish, vigilantism is in many ways the opposite, characterizing a culture in which localized extra-state action is instead responsible for law and order. This might explain pre-mid-century lower absolute levels of punitiveness in the South, but *on its own* cannot explain a subsequent reversal.

⁹Smith et al. (2018) from ICPSR. See Appendix B for Gallup polls.

¹⁰Indeed, when using GSS data to 2016 in combination with the Gallup data, my inductive search for a structural break yields two breaks—the one described in the next section corresponding to the punitive turn, and one corresponding to the innocence turn.

by using responses to the question “Are you in favor of the death penalty for a person convicted of murder?” focusing on *support* or *oppose* responses with additional analyses incorporating *don’t know*.¹¹ I use this question because it is the only question on punitive attitudes asked frequently and with consistent wording throughout the period of study.¹² In order to understand the existence of a punitive *turn*, it’s necessary to know the nature of punitive attitudes consistently before and after any purported turn. Thus, it’s essential to use a question asked as early as possible—here 1953.¹³ The frequency of the question is also essential in order to engage in sub-group analysis while minimizing (random) sampling error. Finally, the death penalty question maintains consistent wording throughout the period of study, ensuring that changes in observed responses over time are not a function of changes in how the question was asked.

In order to ensure any changes I document are attributable to changes in attitudes and not question inclusion, I focus only on support for the death penalty rather than integrate punitive attitude questions introduced primarily in later surveys.¹⁴ For this inferential clarity, I trade the ability to fully capture my theoretical construct via a latent dimension of punitive sentiment beyond the single death penalty issue. Yet, the salience of the death penalty during the period (Gottschalk, 2006; Steiker and Steiker, 2020), and the correlation established in the literature (in later years when multiple punitive questions are available) between death penalty attitudes and other punishment questions leads me to believe that this question is still deeply relevant for understanding punitiveness, broadly construed (Enns, 2016).¹⁵ Finally, the death penalty question has the advantage of asking directly about atti-

¹¹The GSS wording is slightly different: “Do you favor the use of the death penalty in the case of murder?” See Appendix C for *don’t know* responses.

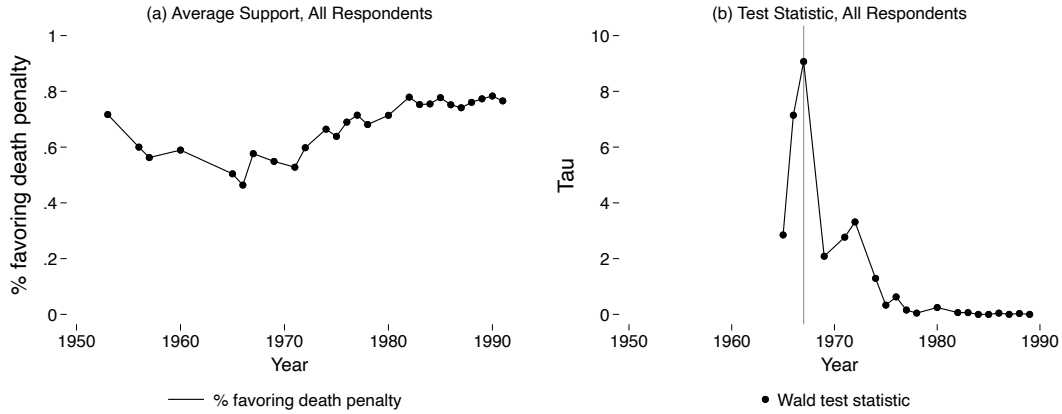
¹²It is the most frequently asked of any punitive question.

¹³The only other punitive question asked prior to 1967 is on the merit of prison punishment versus rehabilitation (asked in 1955, but not again until 1981). The death penalty question was asked once prior to 1953—in 1936. The challenge in using responses from the 1936 survey is that it lacks most of the control variables questions asked in the post-1953 surveys. It also has the largest gap (17 years) to the next survey, making it much more difficult to use in searching for a structural break where a reasonably dense time series is paramount. See Appendix K.

¹⁴Because my empirical strategy considers pre vs. post punitive turn changes with individual-level data, I cannot impute measures across the break, nor use an index drawing from different questions in different years. All but one punitive question is asked post-1970s, after the literature suggests (and my analysis identifies) the punitive turn as having occurred. My measurement strategy is distinct from both Ramirez (2013*b*) and Enns (2016) whose dynamic aggregate analyses utilize a generalized latent dimension of punitiveness that incorporates additional survey questions beyond the death penalty, but do not compare group heterogeneity over time.

¹⁵As Baumgartner, Boef and Boydston (2008) (p. 174) note, the fact that the death penalty question

Figure 2: Structural break in aggregate support for the death penalty, 1953-1985



Notes: The above plot (a) shows the population weighted trends in the percentage of respondents supporting the death penalty. Plot (b) presents the Wald test statistic for a single structural break at each year against the null hypothesis of no structural break. The vertical line indicates the most likely break year.

tudes towards state-administered *punishment* as distinct from questions about adjacent but arguably distinct theoretical constructs (e.g., trust in police).

To correct for sampling issues, particularly relevant in the early surveys, I construct weights via post-stratification cell-weighting using census data. All subsequent analyses are conducted on population-weighted data where weights are constructed via post-stratification cell-weighting by race, region, gender and education (see Appendix E which includes results for unweighted data).¹⁶

The Empirical Analysis

In this section, I answer the questions of when, where, and amongst which racial groups punitive attitudes changed between 1953 and 1985.

The Timing of the Punitive Turn

First, I establish the timing of the punitive turn. A visual inspection of the average punitiveness trend suggests an inflection point around the mid-to-late 1960s (Figure 2 a). I augment a simple visual inspection by formally inductively searching for a single structural

is general and exhibits high support relative to more specific questions might be of consequence for understanding levels of support, but not for understanding trends over time (see also Pickett (2019)).

¹⁶Where relevant in sub-group trends and analysis, I use the relevant population of interest to construct weights, which is not always the national population. Appendix A includes race-region respondent counts.

break ($s = 1$) at unknown year $t = t^*$ in punitiveness.¹⁷ Ideally, high frequency data on punitive opinion would be available to undertake a precise search for such a break. Absent such data, the formal estimation can be considered corroborative of the visual inspection, but inherently sensitive given the data density and small sample.

To conduct the break test, I assume that the first difference in average support for the death penalty ($support_t - support_{t-1}$) in year t varies stochastically with respect to a constant long-run mean (null hypothesis $H_0: s = 0$):

$$support_t - support_{t-1} = \beta_0 + \epsilon_t \quad (1)$$

Relative to this null, I evaluate the hypothesis $H_1: s = 1$ modeled as:

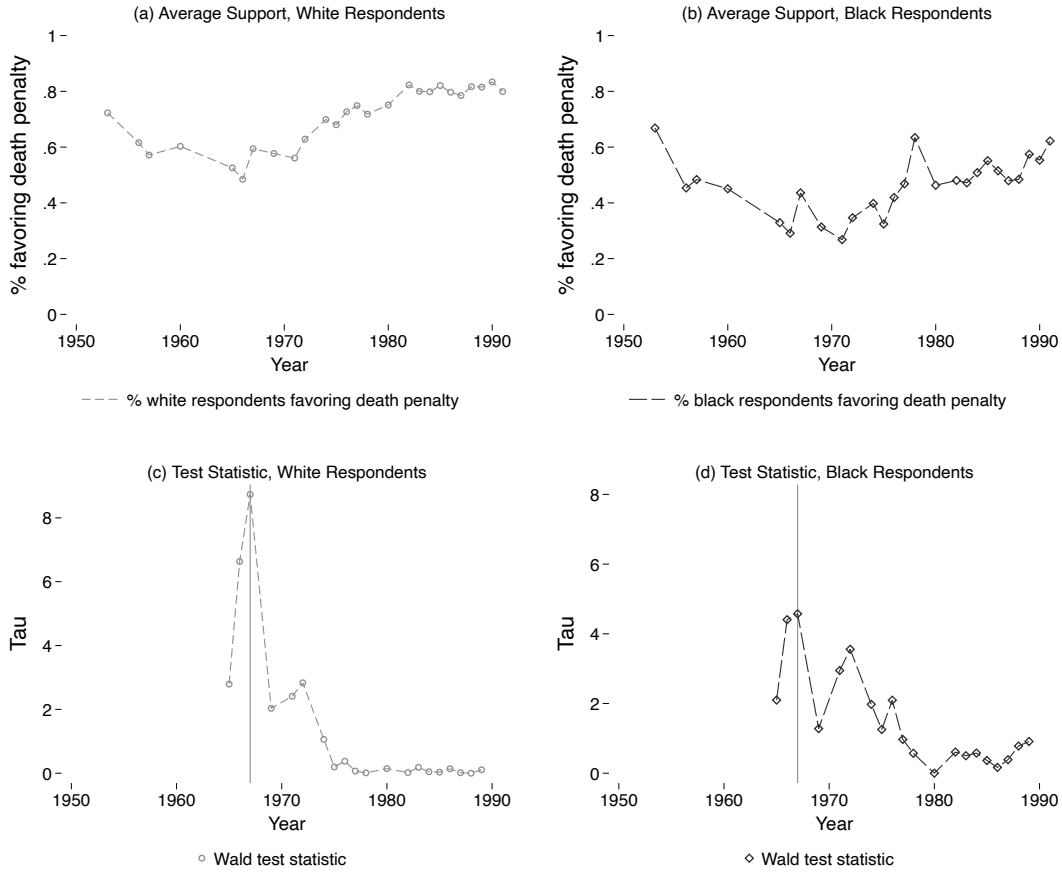
$$support_t - support_{t-1} = \beta_{1,j} + \beta_{2,j} + \epsilon_t \quad (2)$$

where $\epsilon_t \sim IID(0, \sigma^2)$ and $j = t < t^*$ and $k = t \geq t^*$. I conduct a Wald supremum test (see Andrews (1993)).¹⁸ I reject the null hypothesis of no structural break (support for H_0). The Wald test statistic is $\tau = 9.1$, corresponding to a p-value of 0.049. I estimate the most likely break year as $t^* = 1967$. Figure 2 (b) plots the Wald statistic across all possible break points. When I include “don’t know” responses as indicative of a lack of support, I identify the same break (Appendix C).

¹⁷Whether public opinion is more likely to respond to “critical moments” or slowly evolve in dynamic waves is an open question (see e.g., (Kellstedt, 2003, 83)). Here, I consider changes in the trend under the more flexible assumption that even critical moments induce a longer-run evolution in opinion.

¹⁸I symmetrically trim two observations (10%) on the 1953-1990 sample. This longer time series allows for later breaks and prioritizes sample size. I focus on testing for only a single structural break given a single theorized break in the substantive literature. However, it’s worth noting that extending the time series to 2016 and conducting a test for additional breaks yields two breaks corresponding to the punitive turn and the later “innocence turn” identified by Baumgartner, Boef and Boydston (2008). The visual trends suggest non-stationary, and it is well known that misspecified trend models are problematic for estimating structural breaks. Under different assumptions, an augmented Dickey-Fuller test, a KPSS test and a Phillips-Perron test all identify the presence of a unit root, implying that the data is non-stationary. Given the detected unit root, I introduce a one-period lag (i.e., use the first-differenced data) to meet stationarity assumptions of the test.

Figure 3: Structural break in support for the death penalty by race, 1953-1985



Notes: The above plots (a) and (b) show the population weighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plots (c) and (d) present the test statistic from the Wald supremum test for a single structural break at each year against the null hypothesis of no structural break. The vertical lines indicate the most likely break year.

Racial Differences in the Punitive Turn

I next consider whether the punitive turn differed by racial groups. I present the same average trends as before (Figure 3), and conduct the same series of structural break tests as above, splitting the sample into White and Black respondents. The trends in Figure 3 are consistent with the well-documented finding that, in levels, Black people consistently hold less punitive attitudes. Consequently, this already does not support H1a that Black attitudes cannot increase as much because of ceiling effects.

I identify 1967 as the most likely structural break in each series. The break for White respondents is statistically significant at the 10% level ($p=0.057$), however the break for Black respondents is not. This may reflect a more modest transformation in the attitudes of Black respondents, or sample size and sampling error.

I use the inductively determined break point to ask whether Black and White attitudes experienced differential trajectories at this turn. To do so, I use OLS to estimate:

$$Pr(support_{it}) = \gamma_t + \beta_0 white_{it} + \beta_1(post_t \times white_{it}) + \phi X_{zit} + \epsilon_{it} \quad (3)$$

for i respondent in t survey. The parameter γ_t is a vector of survey indicators that capture level differences in death-penalty support common to all respondents in a given survey, including, but is not limited to crime trends, media portrayals of crime, national political rhetoric, and so on; $white$ is an indicator equal to one for respondents who identify as White (indexed by t because the data is structured as repeated cross-sections); $post$ is an indicator equal to one in any year after 1967; X is a matrix of z covariates, including geographic region indicators¹⁹ finally, ϵ is the idiosyncratic error term, which I estimate accounting for heteroskedasticity and clustering for just 8 regions, which is highly restrictive. The parameter β_1 in model 3 estimates the pre-to-post 1967 (punitive turn) difference in punitiveness between White and Black respondents. I treat this as a descriptive parameter.²⁰

Given the theoretical importance of not only race, but also context in producing punitive attitudes, in the model above, I include region-specific variation in homicide victimization rates per 100,000 for both White and non-White people in X . I collected these data from vital statistics reports published by the Centers for Disease Control (see Appendix H).²¹ Homicide rates have three advantages: *i*) they capture the crime most closely related to the measure of punitiveness used (death penalty attitudes), *ii*) they are available from the earliest period of the attitude data, and *iii*) their disaggregation by race allows us to understand respondent attitudes in relation to in-group and out-group crime. In Appendix H, I demonstrate that the results are robust to the homicide growth rate, and to measuring crime more generally, using violent and property crime rates from the Uniform Crime Reporting (UCR) system of

¹⁹Region is the most disaggregated geographic level available in the non-restricted GSS data. I use a set of individual-level covariates consistently available, and with comparable coding across the entire period of study: a continuous measure of *age* and *age*², a *gender* indicator, indicators for 4 educational levels, indicators for 5 city population levels, and indicators for 8 regions (including the South). See Appendix A summary statistics.

²⁰Appendix G describes the relevant assumptions for treating this as a causal parameter and demonstrates parallel pre-1967 trends.

²¹I can measure victimization at the state or certain lower levels of geographic aggregation (e.g., metropolitan regions). However, punitive attitude data is only disaggregated to the regional level, thus I aggregate homicide rates to the region.

Table 1: Death penalty support as a function of race pre to post-1967

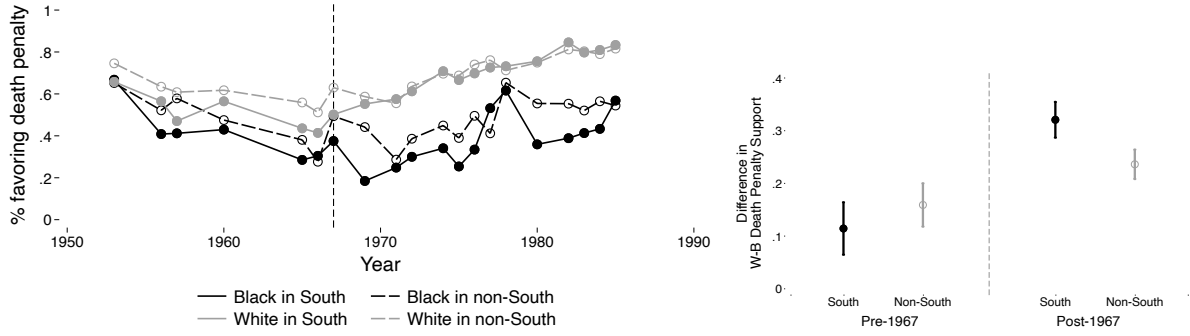
	% Support Death Penalty	
	(1)	(2)
White	0.15*** (0.0098)	0.15*** (0.010)
White $\times$ Post	0.13*** (0.024)	0.13*** (0.024)
Homicide rate (W)		-0.0032 (0.0079)
Homicide rate (NW)		0.0019 (0.0026)
Year Period	1953-85	1953-85
Race Sample	W&B	W&B
Survey FE	✓	✓
Controls	✓	✓
Crime Control		✓
Observations	40089	40089

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd= 0.48). Appendix O for covariate estimates. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

the FBI (Kaplan, 2021); however, these latter data are only available from 1960 and are not race-specific. I do not include national crime, nor any national level time-varying controls, as these are co-linear with the survey fixed effects (γ_t). Thus, this model assumes punitiveness is a function of national crime rates (via γ_t), *and* a function of crime in the respondent's region, but asks (and estimates) how the punitive turn was heterogenously experienced by different racial groups. This is different from the question asked by much of the literature which is what national factors move with the aggregate trend in punitiveness.

I find that White support for the death penalty grew differentially at the punitive turn as compared to that of Black respondents (Table 1). While White support was, on average, higher in the pre-period by 15-17 percentage points (estimate on *white*), in the post-1967 period, this difference grew by 11-13 percentage points *more* than that of Black respondents (estimate on *white* $\times$ *post*) (supporting H2 relative to H1). The post-1967 period was to increase by three quarters the existing differential White support for the death penalty. Regional homicide rates are neither substantively nor statistically predictive of death penalty attitudes.

Figure 4: Support for the death penalty by region and race, 1953-1985



Notes: Plot (a) shows weighted data trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plot (b) presents point estimates for the simple difference in means between White and Black respondents before (left) and (right) the inductively determined punitive turn (1967) between the South (black points) and non-South (light gray points).

Race and Geography at the Punitive Turn

Next, I turn to asking *where* punitive attitudes grew the most, and whether any region-specific growth was differentially experienced by different racial groups. As motivated by the theoretical framework, my interest is first and foremost in the extent to which the South is an outlier in the punitive turn.

I begin with graphical evidence.²² Figure 4 presents the differences by race and region (plot a). Prior to 1967, trends in death penalty support were modestly declining for all sub-populations. After 1967, however, support amongst Southern Whites rapidly increased, matching levels of support amongst non-Southern Whites by 1972 and moving in near lock-step from that point forward. By contrast, support for the death penalty amongst Southern Blacks—which had exhibited similar levels and patterns to Southern Whites in the pre-1965 period—did not exhibit a sharp increase. Instead, it converged towards the level and trend of non-Southern Black people whose support increased, but did so more slowly and to a lower absolute level than Whites.

Figure 4 (plot b) summarizes these trends by presenting the difference in means between Black and White respondents in each of the two regions and each of the two time periods. On average, growth in the South’s racial difference in punitiveness from pre-to-post 1967 is pronounced, and larger than the growth in the non-South.

To estimate these differences more precisely, I adjust equation 3 to consider regional

²²I find evidence of a structural break for both the South and non-South in 1967 (Appendix J).

heterogeneity:

$$Pr(support_{it}) = \gamma_t + \beta_0 south_{it} + \beta_1(post_t \times south_{it}) + \phi X_{zit} + \epsilon_{it}. \quad (4)$$

I use a binary indicator for South to ease interpretation.²³ In addition, I consider this equation for the sample of White respondents alone, asking whether White people in the South, specifically, experienced the punitive turn differentially from White respondents outside of the South. Third and finally, I combine the racial variation in equation 3 with the regional variation in equation 4 to estimate a triple difference specification on the full sample of respondents that compares differences in death penalty support: (1) between Black and White respondents, (2) before-to-after 1967, and (3) between the South and non-South (via the addition of $\beta(south_{it} \times south_{it} \times post_{it})$). This evaluates whether the *difference between White and Black punitive attitudes* grew by more in the South relative to the non-South from before to after the 1967. Given that the growth in attitudes might be driven in part by non-national time-varying factors, the triple difference uses the attitude growth of other races and in other regions as way to benchmark how much White Southern attitudes might have (counterfactually) grown if not for the factors unique to the South and to White people. That said, the identifying assumption that the attitudes of different races represent the true counterfactual for one another is extremely difficult to defend and I therefore treat the triple interaction as a descriptive parameter.

Table 2 presents the results. Model 1 indicates that, although the South was less supportive of the death penalty on average pre-1967 (estimate on *south*), death penalty support grew by approximately 7 percentage points more after 1967 as compared to the pre-turn period (estimate on *south* $\times$ *post*). Death penalty support was not higher than other regions on average, post-1967. Rather, the South made up the gap in death penalty support exhibited in the pre-1967 period between it and other regions. Model 2 (and all even numbered columns) adds the time-varying controls for regional homicide rates and estimates a similarly sized parameter on the interactions (robust to other crime measures in Appendix H).

In models 3 and 4, I restrict the sample to White respondents. I find that Whites

²³The results are robust to estimating separate levels for each of the two non-South region.

Table 2: Death penalty support as a function of race and geography pre to post-1967

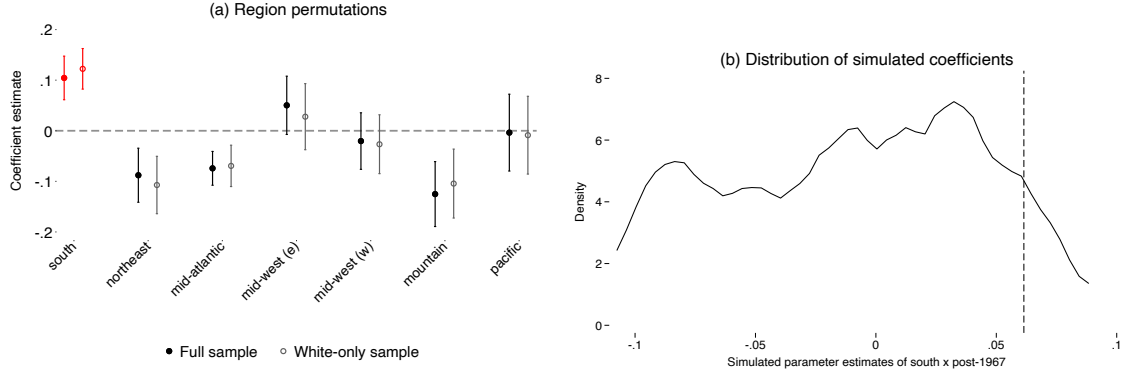
	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
White	0.23*** (0.0098)	0.23*** (0.0099)			0.16*** (0.022)	0.15*** (0.021)
South	-0.081** (0.028)	-0.087** (0.028)	-0.096** (0.028)	-0.10*** (0.029)	-0.057 (0.046)	-0.065 (0.045)
South $\times$ Post	0.067** (0.024)	0.061* (0.029)	0.096*** (0.023)	0.088** (0.029)	-0.013 (0.047)	-0.019 (0.051)
White $\times$ South					-0.039 (0.025)	-0.037 (0.024)
White $\times$ Post					0.095** (0.027)	0.096** (0.028)
White $\times$ South $\times$ Post-1967					0.11*** (0.029)	0.11*** (0.029)
Homicide rate (W)		0.0049 (0.0042)		0.0062 (0.0049)		0.0050 (0.0043)
Homicide rate (NW)		-0.0010 (0.00063)		-0.0012* (0.00064)		-0.0010 (0.00063)
Year Period	1953-85	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W-only	W-only	W&B	W&B
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control		✓		✓		✓
Observations	40089	40089	35749	35749	40089	40089

Notes: The above table presents OLS estimates of equation 4. Standard errors are heteroskedastic robust to regional clustering. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd= 0.48). Appendix O for covariate estimates. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

in the South in the pre-1967 period had lower levels of support for the death penalty—by ~ 9 percentage points—than did their non-Southern counterparts (estimate on *south*). However, Southern Whites differentially increased their death penalty support after 1967 by ~ 10 percentage points (estimate on *south $\times$ post*), making up the full difference in average pre-1967 difference between Southern and non-Southern Whites. Appendix I shows that in the post-1967 period there is no evidence that Black attitudes became punitive in the same regionally-defined way. Black people in the South had lower pre-1967 death penalty support despite higher homicide rates. Post-1967 death penalty support amongst Black respondents in the South declined by ~ 1 percentage point relative to the pre-1967 period, and I cannot distinguish the estimate from zero.

The results from the triple difference in model 5 more formally compare changes in White attitudes in the South to Black attitudes in the South pre-to-post 1967. They indicate larger growth in death penalty support pre-to-post 1967 between White and Black respondents in

Figure 5: Estimates of regional difference in punitive attitudes, 1953-1985



Notes: Plot (a) shows point estimates from 14 separate OLS estimations of β_1 from equation 4, the differential change in support for punitiveness by region for both the full sample (filled circles) and White-only sample (hollow circles). The models replace *south* by alternative indicators equal to 1 for respondents in the named region and equal to zero otherwise. Plot (b) presents the distribution of simulated β_1 estimates from the Fisher exact test. The vertical line represents the estimate of the coefficient from Table 2.

the South as compared to the non-South. In magnitude, the difference is ~ 11 percentage points, an approximately two thirds percent increase from the pre-1967 White support (estimate on *white*) and a more than doubling of the non-South support in the post-period (estimate on *white* $\times$ *post*). Together, these results support H3.

I consider the magnitude of these differences in the punitive turn for the South relative to other regions using an alternative set of assumptions. Specifically, I ask: conditional on the sample, was the South exceptional in its experience of the punitive turn, or could these results have arisen by chance? To understand this, first, I estimate the models presented in columns 2 and 4 of Table 2 separately for the six other permutations of a single region as the region of hypothesized difference (“treatment”).²⁴ In all cases (Figure 5 plot a), I find that the estimates for other regions are less than or statistically indistinguishable from zero, consistent with the South growing fast in its punitiveness and being contained within the 0 of the indicator of other regions (lack of support for H4).

I more formally use randomization inference—a Fisher exact test—to understand the probability of observing a coefficient on *south* $\times$ *post* as large as those in models 1 and 3 under the (sharp) null of no relationship for any respondents: $H_0: \beta_{1,i} = 0, \forall i$, where $\beta_{1,i}$ is defined as the difference in death penalty support for respondent i in the post-1967 period

²⁴The model is: $support_{it} = \gamma_t + \beta_1(post_t \times region_{it}) + \phi X_{zit} + \epsilon_{it}$, where $region_{it}$ is an indicator equal to 1 if respondents reside in a given region, and equal to zero otherwise. It varies by t because the data are repeated cross-sections. Appendix A lists the states by region.

in the South ($south = 1$) as compared to not being in the South ($south = 0$).²⁵ To conduct this inference, I assume that my sample comprises the full population.²⁶ I permute 2,000 random draws of respondent “assignment” to *south* (maintaining region clustering), and evaluate in how many of these permutations of regional assignment I observe a coefficient as large as that estimated on the actual data (β_1). I reject the null hypothesis at the 1% level (p-value= 0.010).²⁷ Figure 5 (plot b) shows the distribution of the parameter estimates from the permutations and the estimate from the actual data (vertical line). Thus, under an alternative set of assumptions, my results indicate that the differential post-1967 growth in death penalty support in the South was extremely unlikely to have arisen by chance.

In summary, these results suggest that 1967 was a turning point in punitiveness as measured by death penalty support. White people, and those in the South, increased their support for the death penalty differentially after this turn. Given the regional and racial distribution of crime, and the inclusion of time-varying regional measures of crime, the results suggest that genuine concern for personal safety are unlikely to constitute the full explanation for the punitive turn. Although Black people were far more likely to experience crime as measured by homicide victimization rates, White people increased their punitiveness more. And although Black people in the South experienced the highest crime rates, it was White people in the South whose punitiveness grew the most after 1967. An alternative theoretical model—directly empirically evaluated in Appendix H using homicide growth rates—that assumes higher elasticities of punitive increase at lower levels of crime would predict that White people in the non-South would have had a larger post-turn increase in death penalty support than those in the South, the opposite of what is found. Instead the results indicate that insofar as experience with crime may have been a first-order activation of punitiveness, that activation was filtered through respondent race and geographic context in systematic

²⁵In using randomization inference, I do not claim that respondents in the South were *randomly treated* by their experience in the South, but instead make a conditional mean independence assumption; $E(\epsilon|\mathbf{X}) = 0$.

²⁶I do not, of course, have the full population. The individual (i) observations are known to be sampled from a larger population. Still, insofar as we have the universe of *regions*, we can think of this as the full population of *regions* (Abadie et al., 2019). This assumption is necessary in order to derive test statistics and distributions from the data itself rather than impose the asymptotic assumptions of classical inference (based on sampling error) from the previous sets of analyses. Where the p-values in the Tables 1-2 above answer the question of how likely the parameter estimates are to be as large as those observed under different samples of the data (holding fixed data characteristics, like region), in this estimation, I ask how likely the parameter estimates are to be so large, *conditional on the sample*, given different regional “assignments.”

²⁷I reject the null hypothesis in the full and White-only sample, and on both β_1 and the simple level difference coefficient on *south*.

ways.

Towards Understanding the Role of Race and Region

Having established the role of race and region in the punitive turn, here I examine two possible explanations for why they played that role. First, I consider whether White people in the South became more responsive to crime from before to after the punitive turn relative to respondents in other regions. Second, I consider whether the patterns of partisan support for punitive attitudes are consistent with Southern White exodus from the Democratic party occurring amongst those changing their punitive attitudes at the turn. Given data availability, these empirical analyses take the form of better understanding dynamic moderated relationships.²⁸ Understanding this moderation requires data spanning the full time frame, a significant challenge, particularly pre-turn, as many implications of from the theoretical framework are simply unmeasurable in a way that can be linked to the punitive attitude data.

Moderation in the Relationship Between Crime and Punitivness

I first consider whether region-specific and race-specific violent crime shaped punitive attitudes in the South differently from before to after the punitive turn. The previous analyses already account for time-varying region-specific crime as a factor *directly* affecting punitive attitude formation—that is, the previous analyses account for the fact that punitive attitudes may have changed differentially in the South *because* the South experienced more/growing crime.

Here, I ask whether the punitive turn was characterized by White people in the South becoming newly or differentially responsive to crime relative to Black people or people in other regions. If such temporal moderation occurs differently in the South, this would be

²⁸Critically, the aim of these analyses is not to understand post-turn moderation already well-established in the literature. For instance, in Appendix N, I demonstrate that those with more prejudicial attitudes are more likely to support the death penalty post-turn, but I find no evidence of regional heterogeneity in that relationship. I also demonstrate that lower support for welfare, generally, and for Black-specific government assistance, specifically, is associated with more punitive attitudes post-turn, but I find no evidence that this relationship is different in the South. In the appendix, I discuss the challenge of interpreting this evidence as explanatory of the punitive turn given the lack of data from the pre-turn period.

consistent with the contention that the transformation of punitive attitudes in the South at the punitive turn was, at its root, a function of violent crime. Though the media or political actors may have drawn the public’s attention to crime, attitude formation was fundamentally rooted in the objective occurrence of crime (H1).²⁹

I again measure violent crime by region using homicide victimization rates. Of course, although it would be ideal to measure respondents’ personal experience of violent crime, no such measure exists that is paired with punitive attitudes over the time period of study. Thus, this approach assumes that personal experience, and thus personal risk—as well as risk to those proximate in one’s network or simply in-group salience and/or preference—is approximated by in-group (co-racial) regional crime. In addition, the approach assumes that the variation across regions is more meaningful than variation within region. In Appendix H, I also demonstrate that reducing within-region variation by restricting the sample to urban residents only—those most likely to closely experience violent crime (Miczek, Reiss and Roth, 1994)—does not change the subsequent results. It’s worth emphasizing that homicide victimization rates by race do not directly capture perpetrator race, only victim race, though violent crime, particularly homicide, occurs predominantly within-race (Miczek, Reiss and Roth, 1994).³⁰

With this data, I analyze whether there is differential post-turn punitive responsiveness to regional violent crime—that is, whether punitive attitudes became more strongly positively correlated with violent crime after the punitive turn, as compared to before; and whether that correlation varies by region. To do so, I augment equation 3 with interactions between regional homicide rates by race and indicators for the post-1967 period. I present estimates on samples restricted by respondents’ race in models in Table 3 for interpretability. I find that support for the death penalty responded differently pre-to-post 1967 to the White homicide rate amongst White respondents (estimate on *homicide rate (W) × post* in model

²⁹Furthermore, if in-group responsiveness is greater for White respondents relative to Black respondents, this would support the contention that the growth in crime *given* a low baseline—which was true for the White population—was more significant in forming punitive attitudes than higher rates (H1b). However, if White respondents are differentially and positively responsive to *out-group* (non-co-racial) violent crime instead of in-group violent crime—particularly in the South—this would be more difficult to reconcile with H1.

³⁰The exception is felony homicide (e.g., robbery-murder) where White victims are as likely to have a White or Black perpetrator (Wilbanks, 1985).

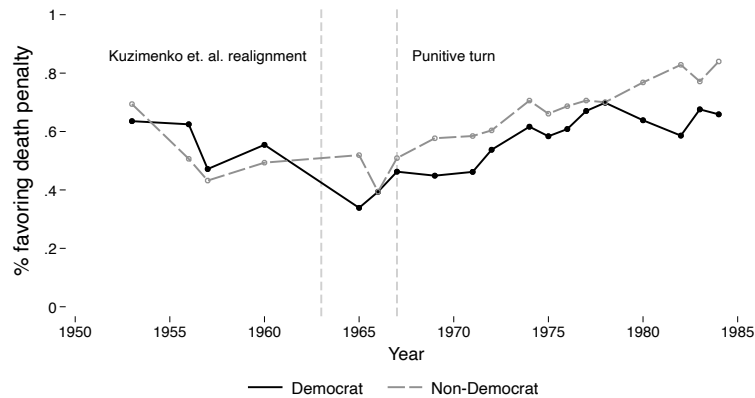
Table 3: Death penalty support as a function of heterogenous responses to race-specific regional crime before to after 1967 by race and region

	% Support Death Penalty			
	(1)	(2)	(3)	(4)
Homicide rate (W)	-0.081*** (0.011)	-0.011 (0.015)	-0.072** (0.027)	-0.092 (0.057)
Homicide rate (NW)	0.0054** (0.0018)	-0.00082 (0.0039)	0.0073*** (0.0018)	0.0033 (0.0072)
Homicide rate (W) $\times$ Post	0.063*** (0.0056)	-0.00073 (0.015)	0.048* (0.023)	0.060 (0.047)
Homicide rate (NW) $\times$ Post	0.00046 (0.0014)	0.0049 (0.0051)	-0.0014 (0.0017)	0.0020 (0.0064)
South			0.087 (0.046)	-0.059 (0.048)
Homicide rate (W) $\times$ South			0.024 (0.023)	0.12 (0.064)
Homicide rate (NW) $\times$ South			-0.0051 (0.0029)	-0.011 (0.0063)
Homicide rate (W) $\times$ South $\times$ Post			-0.014 (0.021)	-0.097 (0.055)
Homicide rate (NW) $\times$ South $\times$ Post			0.0034 (0.0033)	0.0097 (0.0056)
Year Period	1953-85	1953-85	1953-85	1953-85
Race Sample	W-only	B-only	W-only	B-only
Survey FE	✓	✓	✓	✓
Controls	✓	✓	✓	✓
Crime Control	✓	✓	✓	✓
Observations	35749	4340	35749	4340

Notes: The above table presents OLS estimates of equation 3 with additional interactions of race-by-region homicide rate per 100,000 of the race relevant population. Standard errors are heteroskedastic robust to regional clustering. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd=0.48). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

1), but that this responsiveness amongst White people was no different between the South and non-South (estimate on *homicide rate (W) $\times$ south $\times$ post* in model 3). Thus, White respondents became more supportive of the death penalty for increases in the homicide rate from before to after the punitive turn, but that change in support was no different between the South and non-South. Moreover, the post-turn change served to attenuate the pre-turn relationship (estimate on *homicide rate (W)* in model 1), rendering it effectively null (as demonstrated in Tables 1 and 2). Moreover, even setting aside statistical significance, given the sample size and the number of interactions, I estimate negative moderation on post-turn support for the death penalty in the South relative to the non-South (estimate on *homicide rate (W) $\times$ south $\times$ post* in model 3), the 95% confidence interval indicating an upper bound of approximately half of one percentage point. I consider this evidence inconsistent with

Figure 6: Trends in death penalty support by partisanship amongst White respondents in the South, 1953-1985



Notes: The above plot presents the population weighted trends in support for the death penalty amongst White respondents in the South by their partisan identification. The vertical lines correspond to the partisan policy change identified by Kuziemko and Washington (2018), and the 1967 punitive turn. See also Appendix L.

H1. I find no evidence that death penalty support amongst Black respondents (models 2 and 3) changed systematically pre-to-post turn, nor in regionally-defined ways, regardless of victim race. In Appendix H, I further demonstrate that this result holds when considering the homicide growth rate (lack of support for H1b), and when restricting the sample only to large urban areas.

I interpret these results as indicating that changes in death penalty support amongst White respondents in the South was not a function of a regionally-specific change in *crime responsiveness*, namely, co-racial homicide rates most likely to reflect (rational) perceived victimization risk.

Southern Racial-Partisan Realignment

It's well known that mid-century saw Southern Whites re-sorted from the Democratic to the Republican party as the Democratic party embraced Black people and their political concerns (Schickler, 2016). While other work has identified racial attitudes as an important driver of White exodus from the Democratic party (Kuziemko and Washington, 2018), this process has not been systematically linked to punitive attitudes.

Here, I analyze whether there is dynamic moderation in the relationship between partisan identification amongst White respondents in the South and their punitive attitudes. In particular, I analyze whether White Southern Democrats and Republicans were relatively

Table 4: Death penalty support as a function partisanship amongst White Southern respondents, 1953-1985

	% Support Death Penalty	
	(1)	(2)
Democrat	-0.013 (0.018)	0.024 (0.023)
Democrat $\times$ Post	-0.027 (0.022)	-0.064** (0.027)
Homicide rate (W)	-0.0022 (0.0037)	-0.0031 (0.0037)
Homicide rate (NW)	-0.0021 (0.0052)	-0.0036 (0.0053)
Year	1953-85	1953-85, excl. 1965, 66
Race Sample	W-only	W-only
Region Sample	South-only	South-only
Controls	✓	✓
Observations	8374	7001

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. Data are weighted using post-stratification census weights (Appendix E).* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

equally punitive in the pre-turn period, and whether White Southern Republicans were more punitive in the post-turn period.³¹ In the pre-period, a Southern White Democrat identified with a party that had constructed Jim Crow and fought against civil rights for Black people. After realignment and then the punitive turn, a White Southern Democratic was instead identifying with a far more ideologically liberal party that was more supportive of Black civil rights and a larger welfare state. If there is a positive or neutral relationship between Democratic identification and punitive support before the punitive turn, *and* a negative relationship afterwards, this would suggest that racially resentful Whites who overwhelmingly exited the Democratic party were also becoming differentially more punitive (H2). Theoretically, this resentment may have operated through the appeal of Republican's law and order policy, social welfare policy, or both. On this last point, unfortunately the data is not comprehensive enough to say.

Ideally, I would be able to analyze a true panel in order to assess heterogeneity in partisan responses amongst those White people who I observe *switch* from the Democratic

³¹I focus on White respondents in the South because their process of realignment is the best understood in the existing literature.

to Republican parties, holding individual time-invariant factors fixed. Unfortunately, to my knowledge no such panel exists over this period. With repeated cross-sections, therefore, we must be mindful that we cannot account for cross-sectional samples capturing stable partisan identifiers rather than those who switched their identification. Furthermore, while I would ideally replicate Kuziemko and Washington (2018)’s strategy of measuring prejudice and partisanship, the prejudice questions co-occur with the death penalty question only *after* the punitive turn, making it impossible to use them to evaluate dynamic moderation.³²

Though noisy, graphical evidence is suggestive of this temporal relationship (Figure 6). Before 1963, Southern White Democrats were, on average, more punitive than Southern Whites who identified with other parties. After 1967, this relationship reversed. I formally estimate this change by considering my baseline specification with a partisan indicator (*Democrat*) including weak or leaning support, and an interaction between that indicator and post-1967 (*Democrat* $\times$ *post*).³³ Table 4 presents the results. Model 1 considers all survey years, while Model 2 excludes the 1965 and 1966 survey which occurred *after* Kuziemko and Washington (2018) identify the significant inflection point in partisan alignment (1963) and *before* the inflection point in punitive opinion (1967). Perhaps understandably, given the sample restrictions to White respondents in the South, the results are noisy. But they are at least suggestive of a link between punitiveness and partisan realignment. After the punitive turn, White respondents in the South identifying as Democrats were less likely to support the death penalty by ~ 2 -7 percentage points, though I cannot statistically distinguish the estimate from zero on the full sample. Although I cannot estimate more precisely the racial attitudes of those in my sample who identified with each party, the implication from Kuziemko and Washington (2018)’s evidence is that this switch was undertaken predominantly by racially resentful White people, suggesting that prejudice played in an important role in the punitive turn (consistent with H2).

³²See Appendix N.

³³The indicator is equal to zero if the respondent identifies as a Republican, Independent or other. In Appendix L, I also consider support for four specific presidential campaigns argued to be national-level innovators of law and order rhetoric, though I lack meaningful time series to examine dynamic moderation.

Conclusion

In this article, I study the nature of the punitive turn by evaluating racial and geographic heterogeneity in changing punitive public opinion in the mid-20th century U.S. using a long time-series of public opinion data from before-to-after the purported punitive turn.

In doing so, I establish that a structural break in punitive opinion occurred in 1967 in the U.S. Before to after the punitive turn, White people increased their punitiveness by more than Black people, respondents in the South increased their punitiveness by more than those in the North, and White Southerners increased their punitiveness the most. The pattern of moderation of race and region by partisan identification is suggestive of racial-partisan realignment, known to be driven in significant part by racial resentment, differentially shaping punitive attitudes from before to after the turn. At the same time, there is no evidence that Southerners, nor Southern White respondents, increased their punitiveness because they became more sensitive to violent crime. I interpret these findings as suggesting that the experience of crime was insufficient *on its own* to produce the documented changes in punitiveness. Instead, race and additional contextual factors—here encapsulated by the unique political and cultural history of the South—provided substantial mediation of the experience of crime. The results further suggest that theories of the punitive turn that emphasize Northern and Mid-Western attitudinal change as driving forces of the turn are unlikely to explain the turn without revision.

While these results speak to the dynamics of opinion by race and region, they have limitations that offer opportunities for future research. The results do not and cannot offer an explanation of initial level differences by race and region, an interesting question to be sure, but one which requires different theory, data and research design. Answering that question in future research, however, could provide important context to the dynamics identified here. Furthermore, these results are not a definitive test that separates mechanisms proposed in extant theories. As just one example, I cannot evaluate whether White people, nor those in particular regions, differentially consumed particular types of violent media before to after the punitive turn (Enns, 2016). Nor can I evaluate whether partisan realignment is linked to punitiveness because of law and order policy, welfare policy, both or some other divergent partisan policy (Flamm, 2005; Weaver, 2007). Novel data collection might address those

questions in the future.

The results are not the last word on the punitive puzzle, but they document a racial and geographic pattern in punitive attitudes previously missing from the literature. Given the importance of punitive opinion in making punitive policy (Baumgartner, Boef and Boydston, 2008; Enns, 2016), when punitive opinion changes, and for whom it changes, has important implications for the exercise of state punishment. Beyond what might be considered a case-specific question in American politics, these results emphasize the way in which genuine contextual concerns—e.g., crime—can be mediated and augmented by socially-constructed attributes—e.g., race—and experienced in geographically diverse ways. Furthermore, the legacies of race and punishment and their link to a particular region in the U.S. case suggest that the identification of relevant attributes and geographies in other studies is likely to be highly context-specific.

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Online Appendix to “The Racial Geography of U.S. Public Opinion at the Punitive Turn”

Appendix is for online publication only.

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Appendix Contents

A	Summary Statistics	page 2
B	Gallup Poll Sources	page 4
C	Results Including ‘Don’t Know’ Responses	page 5
D	Executions by Race	page 8
E	Sampling, Weights and Results with Unweighted Data	page 9
F	Dynamic Estimates	page 12
G	Parallel Pre-1967 Trends	page 14
H	Crime Rates	page 16
I	Black Respondents-Only Results	page 23
J	Results for the Regional Structural Break	page 24
K	Results Including 1936	page 25
L	Additional Results for Partisanship and Punitiveness	page 28
M	Additional Results for Urban and Punitiveness	page 30
N	Additional Results for Prejudice, Welfare and Punitiveness	page 34
O	Full results	page 39

A Summary Statistics

This appendix presents summary statistics and source data for the variables used in the analysis in Table A1. Second, it presents cell shares for race and region (South, non-South), the two main variables of interest for each survey. The South is defined as Virginia, North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Texas, Arkansas, Louisiana and Kentucky.

Table A1: Summary Statistics

Variable	Mean	Std. Dev.	Min	Max	N
favor death penalty	0.643	0.479	0.000	1.000	40089
favor death penalty (w/ don't know)	0.588	0.492	0.000	1.000	43846
region south	0.258	0.437	0.000	1.000	43846
region northeast	0.053	0.225	0.000	1.000	43846
region mid-atlantic	0.207	0.405	0.000	1.000	43846
region east north central	0.185	0.388	0.000	1.000	43846
region west north central	0.103	0.303	0.000	1.000	43846
region mountain	0.070	0.255	0.000	1.000	43846
region pacific	0.124	0.330	0.000	1.000	43846
white	0.888	0.315	0.000	1.000	43846
age	45.346	16.787	17.000	94.000	43846
male	0.465	0.499	0.000	1.000	43846
city pop <2,500	0.383	0.486	0.000	1.000	43846
city pop 2,500-50k	0.145	0.352	0.000	1.000	43846
city pop 50k-100k	0.145	0.259	0.000	1.000	43846
city pop 100k-500k	0.154	0.361	0.000	1.000	43846
city pop >500k	0.246	0.431	0.000	1.000	43846
education no high school	0.219	0.414	0.000	1.000	43846
education some high school	0.172	0.377	0.000	1.000	43846
education high school grad	0.311	0.463	0.000	1.000	43846
education some post-high school	0.298	0.458	0.000	1.000	43846

Notes: Summary statistics are calculated for 1953-1985 using both Gallup and GSS data.

The number of survey respondents by race and region is presented below.

Table A2: Count of Respondents by Race and Region, 1936-1985

Survey Year	GSS	Respondents	Respondent Count			
			White South	Non-White South	White Non-South	Non-White Non-South
1936	N	2,192	442	7	1,650	25
1953	N	1,475	307	24	982	69
1956	N	1,939	375	47	1,165	108
1957	N	1,527	244	38	899	52
1960	N	2,976	405	154	1,931	154
1965	N	3,474	704	85	2,045	238
1967	N	3,365	714	91	2,197	103
1967	N	3,365	714	91	2,197	103
1969	N	1,493	338	44	931	52
1971	N	1,544	297	57	965	63
1972a	N	1,492	346	55	921	57
1972b	N	1,441	273	41	899	82
1974	Y	1,477	278	53	962	105
1975	Y	1,486	300	39	934	106
1976a	N	1,523	320	67	957	79
1976b	Y	1,490	288	51	1,006	72
1977	Y	1,515	282	71	967	88
1978a	N	932	99	112	259	362
1978b	Y	1,516	312	52	970	96
1980	Y	1,458	295	58	942	67
1982	Y	1,833	302	189	946	277
1983	Y	1,581	267	68	1,088	83
1984	Y	1,421	270	63	905	91
1985a	N	1,483	333	68	893	78
1985b	N	978	238	28	598	48
1985c	Y	1,490	311	46	971	83

Notes: The Respondents column presents the total respondents in the survey. Respondents are calculated from the data as downloaded, not from the survey descriptions. The count of respondents by type presents the count who *answered the death penalty question*. Therefore, the sum of the count columns may not add up to the respondents column.

B Gallup Poll Sources

This appendix presents the sources for the Gallup polls that I use between 1953 and 1985. All polls were downloaded from the Roper iPoll database.

The death penalty question is asked with a minimally necessary degree of frequency. As compared to other work in the 1953-66 period, I have access to 5 surveys that ask the death penalty question. As a point of comparison, Cascio and Shenhav (2020), who also use Gallup data, have access to 45 surveys during that same pre-1967 period that ask their questions of interest. This means that I am limited in the additional questions that I have access to *consistently* across repeated cross-sections. This imposes limits both on heterogeneity analyses that I might conduct and control variables that I might include.

Finally, I also include information on the 1936 Gallup poll that asks about the death penalty in the case of murder. As I note in the main text, the inclusion of respondents from this survey is made difficult because of a lack of comparable control variables to later surveys (and the challenge in constructing post-stratification survey weights (Appendix E)). However, in Appendix K I do include it (with adjustments to the covariates and without weights).

Table B1: Gallup Polls

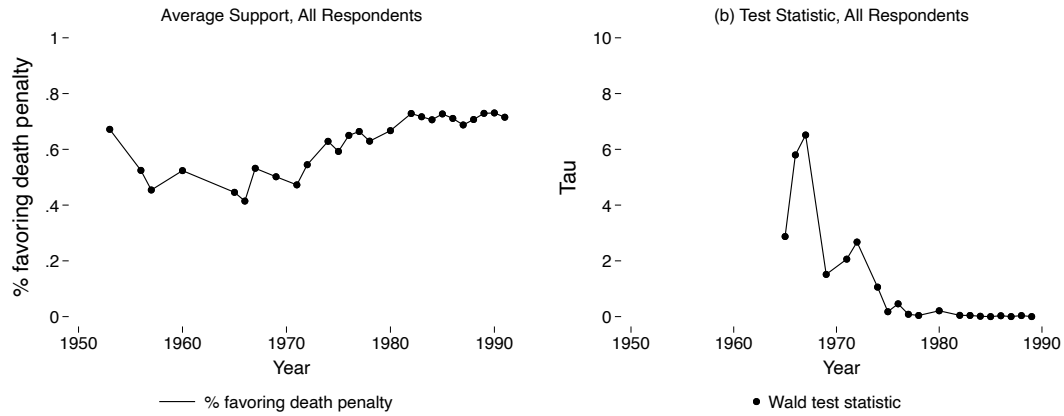
Year	Month	Poll Number	Poll Title	Respondents
1936	Dec	#0059	<i>Prohibition/Republican Party/Death Penalty/War Debts/College Education</i>	2,201
1953	Nov	#0522	Employment/Korea/Death Penalty/Political Parties	1,475
1956	Mar-Apr	#0562		1,939
1957	Aug-Sept	#0588	Asian Flu/Labor Unions/Teenager's Rights/Automobiles	1,527
1960	Mar	#0625		2,976
1965	Jan	#0704		3,474
1967	May	#0729	Vietnam/1968 Presidential Election	3,365
1967	June	#0746	Vietnam/Middle East/1968 Presidential Election	3,365
1969	Jan	#0774	Israel and Middle East Nations/China/Environment	1,493
1971	Oct-Nov	#0839		1,544
1972	Mar	#0846		1,492
1972	Jan	#0860		1,441
1976	Apr	#0949		1,523
1978	Mar	#0995		932
1985	Jan	#1248G		1,483
1985	Nov	#0841	Reagan/Death Penalty/Homosexuality	978

Notes: Not all polls have a title beyond “Gallup Poll” and the number. Respondents are calculated from the data as downloaded, not from the survey descriptions.

C Results Including ‘Don’t Know’ Responses

This appendix presents estimates measuring the outcome variable of death penalty support as a binary variable where I code 1 for responses in support of the death penalty in the case of murder, and 0 for responses not in support, *as well as* “don’t know” and non-responses. Whereas the results in the main paper leave out don’t know and non-responses, here I consider avowed support as compared to a grouped category of non-support, ambivalence and unwillingness to respond.

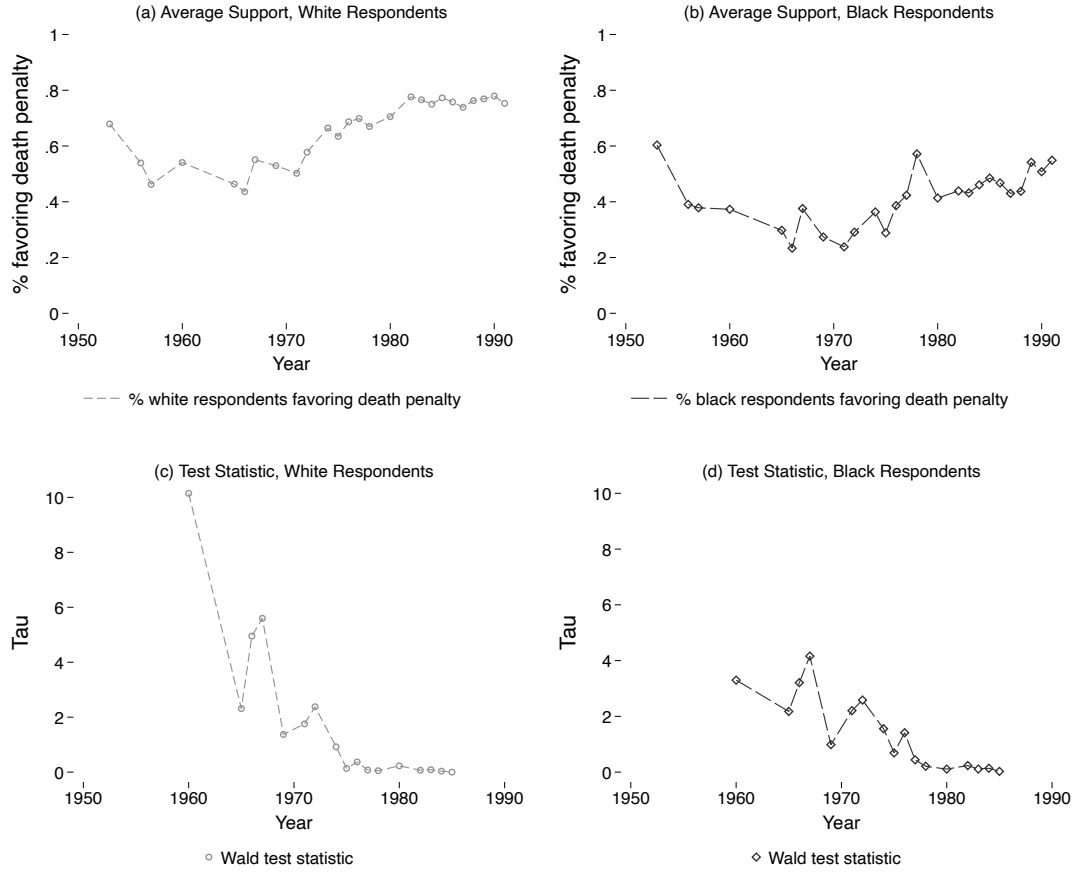
Figure C1: Structural break in aggregate support for the death penalty including don’t know responses, 1953-1985



Notes: The above plot (a) shows the population weighted trends in the percentage of respondents indicating support for the death penalty in the case of murder with the inclusion of “don’t know” responses as “no” responses. Plot (b) presents the Wald test statistic (tau) from the Wald supremum test for a single structural break at each year against the null hypothesis of no structural break. The vertical line indicates the most likely break year.

Figure C1 and the associated analysis find the same structural break year in the aggregate trend excluding don’t know responses. The race-specific trends also identify 1967 as a possible break year (Figure C2), though the test statistics are smaller than the aggregate. In the case of White respondents, there is also evidence that a break may have come earlier in the 1960s.

Figure C2: Structural break in support for the death penalty by race including don't know responses, 1953-1985



Notes: The above plots (a) and (b) show the population weighted trends in the percentage of respondents indicating support for the death penalty in the case of murder with the inclusion of “don’t know” responses as “no” responses. Plots (c) and (d) present the Wald test statistic from the Wald supremum test of a single structural break at each year against the null hypothesis of no structural break. The vertical lines indicate the most likely break year.

Table C1: Death penalty support as a function of race pre to post-1967 including don't know responses

	% Support Death Penalty	
	(1)	(2)
White	0.14*** (0.0087)	0.14*** (0.0091)
White $\times$ Post	0.13*** (0.018)	0.13*** (0.018)
Year Period	1953-85	1953-85
Race Sample	W&B	W&B
Survey FE	✓	✓
Controls	✓	✓
Crime Control		✓
Observations	43846	43846

Notes: The above table presents estimates of equation 3 with the inclusion of “don’t know” responses as “no” responses. Standard errors are clustered at the region. Data are weighted using post-stratification census weights (Appendix E). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Table C2: Death penalty support as a function of race and geography pre to post-1967 with the inclusion of don't know responses

	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
White					0.14*** (0.017)	0.16*** (0.023)
South	-0.15*** (0.020)	-0.17*** (0.031)	-0.13*** (0.021)	-0.14*** (0.027)	-0.097** (0.031)	-0.12** (0.047)
South $\times$ Post	0.078** (0.024)	0.077* (0.035)	0.093*** (0.024)	0.091** (0.031)	0.012 (0.039)	0.014 (0.058)
White $\times$ South					-0.028 (0.021)	-0.021 (0.028)
White $\times$ Post					0.11*** (0.021)	0.091** (0.027)
White $\times$ South $\times$ Post-1967					0.080*** (0.022)	0.076* (0.032)
Violent crime rate		-0.00014* (0.000069)		-0.000081 (0.000075)		-0.000094 (0.000072)
Year Period	1953-85	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W-only	W-only	W&B	W&B
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control		✓		✓		✓
Observations	43846	38956	38935	34439	43846	38956

Notes: The above table presents OLS estimates of equation 4 with the inclusion of “don't know” responses as “no” responses. Standard errors are heteroskedastic robust to regional-clustering. Data are weighted using post-stratification census weights (Appendix E). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

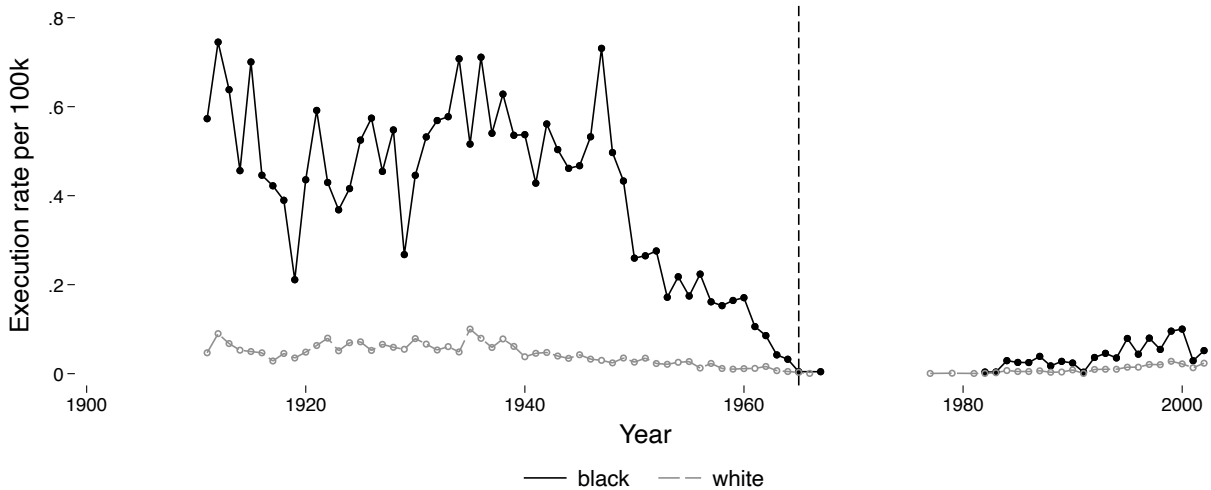
D Executions by Race

Figure D1 presents trends in executions by race since 1910 from Espy and Smykla (2016). The execution rates are presented as the rate per 100,000 using census data.¹ Executions include both those conducted by the federal government and those conducted by the states. As a consequence of the *Furman v. Georgia* Supreme Court decision, no executions were carried out between 1968 and 1976. The *Gregg v. Georgia* Supreme Court decision restored the use of the death penalty in 1976. The data includes only executions that were carried out, not death sentences that were not, or have not been completed.

As Figure D1 illustrates, Black people were executed at significantly higher rates as a share of their population than White people in the vast majority of years. In those years where they are not, the rate is equal to that of Whites. Scholars like Garland (2010) connect the legacy of state sanctioned executions and extra-judicial killings during the Jim Crow era in blunt terms: “many of the social and political dynamics that produced lynchings in the early 20th century continue to produce death penalties” to this day (p. 34).

Although it is not possible with the public opinion data available in the paper to understand *to whom* respondents expect punishment to be applied, the findings here suggest that insofar as respondents were drawing from information on *actual* rates of death penalty application, they would have expected the death penalty in all years to be at least as likely (and indeed more often *more likely*) to be applied to Black people.

Figure D1: Trends in executions by race, 1910-2010



Notes: The above figure plots the raw data trends in execution rates per 100,000 by race. Executions include all that were carried out by both the states and the federal government. Between 1967 and 1976 no executions took place as a result of the *Furman v. Georgia* Supreme Court decision.

¹Prior to 1970, census race categories are recorded as either White or Non-White.

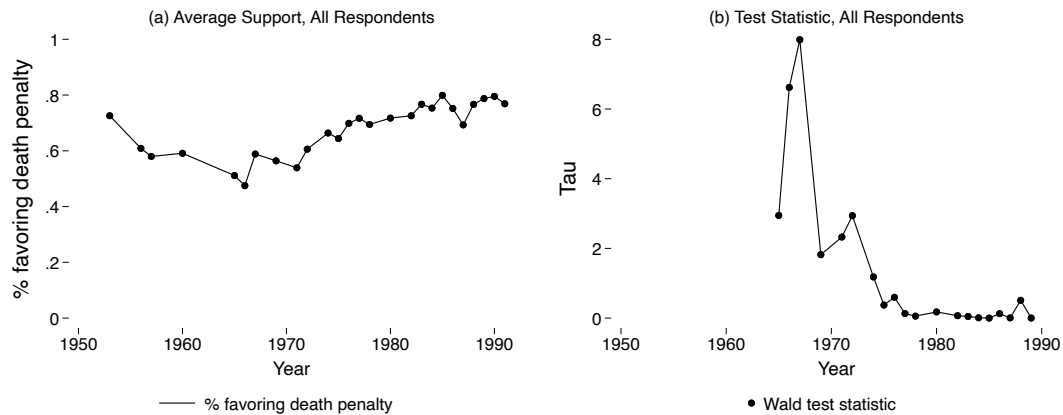
E Sampling and Weights

Gallup polls constitute the core of the public opinion data used in this paper’s analysis, including all of the crucial pre-1970s data. In the pre-1950 era—before the first survey that I use—Gallup polls were conducted using quota sampling with significant issues in their ability to represent the population as a whole (Berinsky, 2006). Since 1950, Gallup polls have proceeded with random probability sampling using blocs—dividing the US into community size strata, then geographic regions, before pairs of localities are selected, and so forth.

Despite the use of bloc random probability sampling, there are still potential issues with the way the earliest Gallup polls represented the population as a whole, particularly in terms of groups by region (the South) and race (Black people) that are crucial for the analysis in this paper. The data from some early Gallup polls comes “weighted” via duplicate observations.² While data in other surveys are not duplicated and do not provide a weight variable.³ I attempt to improve on this weighting and correct for a lack of included weights by constructing my own weights using the cell-weighting technique of Berinsky (2006). Cell-weighting is a post-stratification weighting scheme that is simple to implement and requires minimal assumptions. Recent work applying this method to early Gallup poll data is found in Kuziemko and Washington (2018) and Cascio and Shenhav (2020).

I use a cell weighting scheme involving four variables: region (South, not), race (White, Black), education (high school graduate, not), and gender (male, female).⁴ I use these variables because they represent important and known ways that early surveys may have deviated in their sampling from population shares. In addition, these four variables are available across all surveys that I use, and return cell sizes that are sufficiently large to construct weights. Appendix A includes race-region respondent counts.

Figure E1: Structural break in aggregate support for the death penalty with unweighted data, 1953-1985



Notes: The above plot (a) shows the unweighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plot (b) presents the Wald test statistic (τ) from the Wald supremum test for a single structural break at each year against the null hypothesis of no structural break. The vertical line indicates the most likely break year.

I use Census microdata and code provided in the replication package for Cascio and Shenhav (2020). I adjust the authors’ code to reflect their different interest in the voting age

²This is the case in the surveys that I use from 1965-1967 and 1969.

³This is the case in the surveys that I use from 1953, 1956, 1957 and 1960.

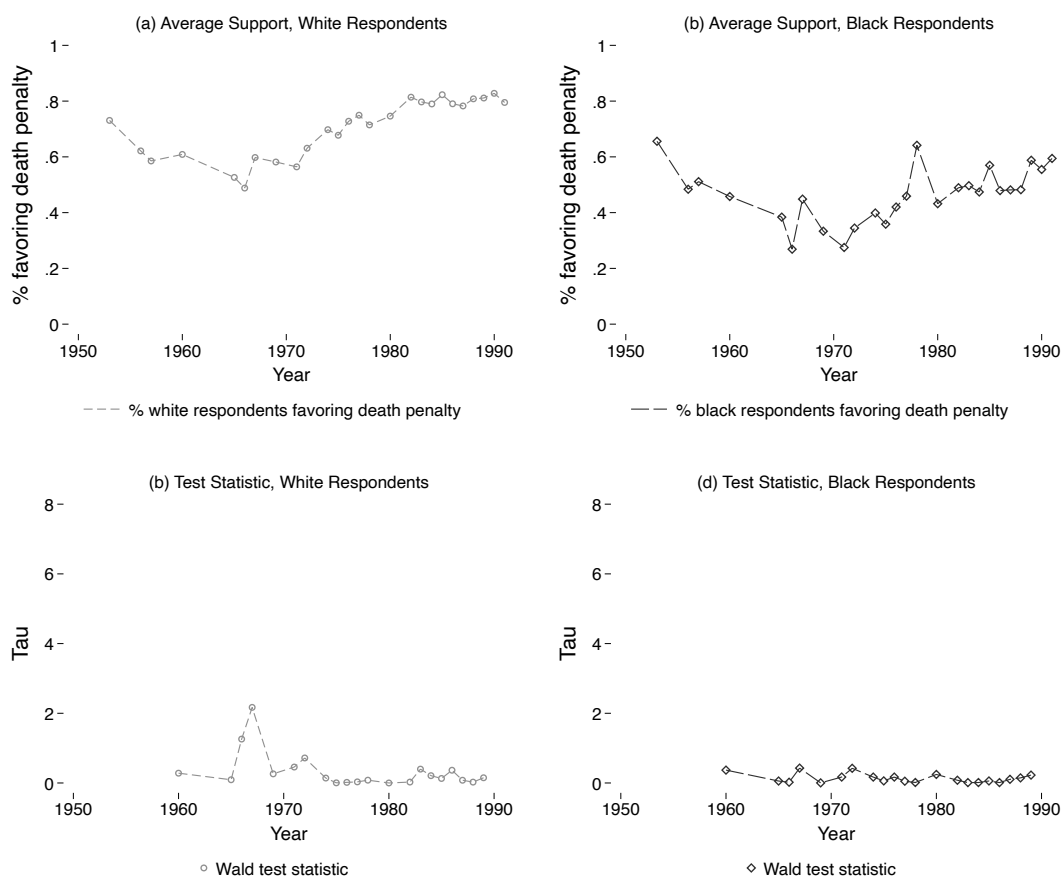
⁴In early census years I use the non-white category because there is not a separate category for Black.

population, their interest in post-election years, and their larger sample of surveys allowing them to use year-of-birth cohorts. Their supplemental online appendix provides a detailed description of their data collection and weight construction, and their code is publicly available.

I apply these weights to all data for a consistent weighting scheme, including the GSS data. I find very modest differences between my parameter estimates using weighted and unweighted data (surely reflecting that those variables that I use to weight are also included as regressors).

I present the main figures and tables from the paper analyzed on unweighted data in this appendix. In the case of the structural break, I find that the aggregate results in the paper hold in substantive and statistical terms (Figure E1). There is likely to be one structural break, and that break is likely to be at 1967. In the case of the race-specific trends, however, I find again, 1967 is the most likely single structural break in the case of White respondents (Figure E1). But the estimate I cannot reject the null hypothesis of no break. I find no evidence of a structural break for Black respondents

Figure E2: Structural break in support for the death penalty by race including with unweighted data, 1953-1985



Notes: The above plots (a) and (b) show the unweighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plots (c) and (d) present the Wald test statistic for a single structural break at each year against the null hypothesis of no structural break. The vertical lines indicate the most likely break year.

Finally, Tables E1 and E2 present the main estimations from the paper. Again, the main qualitative results hold—White punitiveness grew more after 1967 despite already being higher on average; punitiveness in the South grew more post-1967, despite being initially lower (especially amongst White respondents); and the post-1967 Black-White difference

between South and non-South respondents is positive and of similar magnitude, though not different from zero at the 10% level in either model (5 and 6).

Table E1: Death penalty support as a function of race pre to post-1967 with unweighted data

	% Support Death Penalty	
	(1)	(2)
White	0.13*** (0.011)	0.13*** (0.011)
White $\times$ Post	0.13*** (0.024)	0.13*** (0.023)
Homicide rate (W)		-0.0041 (0.0074)
Homicide rate (NW)		0.0019 (0.0024)
Year Period	1953-85	1953-85
Race Sample	W&B	W&B
Survey FE	✓	✓
Controls	✓	✓
Crime Control		✓
Observations	40089	40089

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Table E2: Death penalty support as a function of race and geography pre to post-1967 with unweighted data

	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
White					0.13*** (0.0055)	0.13*** (0.0059)
South	-0.11*** (0.018)	-0.14*** (0.040)	-0.091*** (0.019)	-0.13** (0.039)	-0.065* (0.034)	-0.11** (0.046)
South $\times$ Post	0.079** (0.023)	0.100*** (0.021)	0.10*** (0.023)	0.12*** (0.019)	-0.0052 (0.044)	0.020 (0.036)
White $\times$ South					-0.026 (0.021)	-0.023 (0.021)
White $\times$ Post					0.10*** (0.018)	0.11*** (0.020)
White $\times$ South $\times$ Post-1967					0.11*** (0.027)	0.10*** (0.028)
Homicide rate (W)		-0.0057 (0.0034)		-0.0043 (0.0035)		-0.0050 (0.0033)
Homicide rate (NW)		0.0038 (0.0023)		0.0039 (0.0023)		0.0040 (0.0023)
Year Period	1953-85	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W-only	W-only	W&B	W&B
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control		✓		✓		✓
Observations	40089	40089	35749	35749	40089	40089

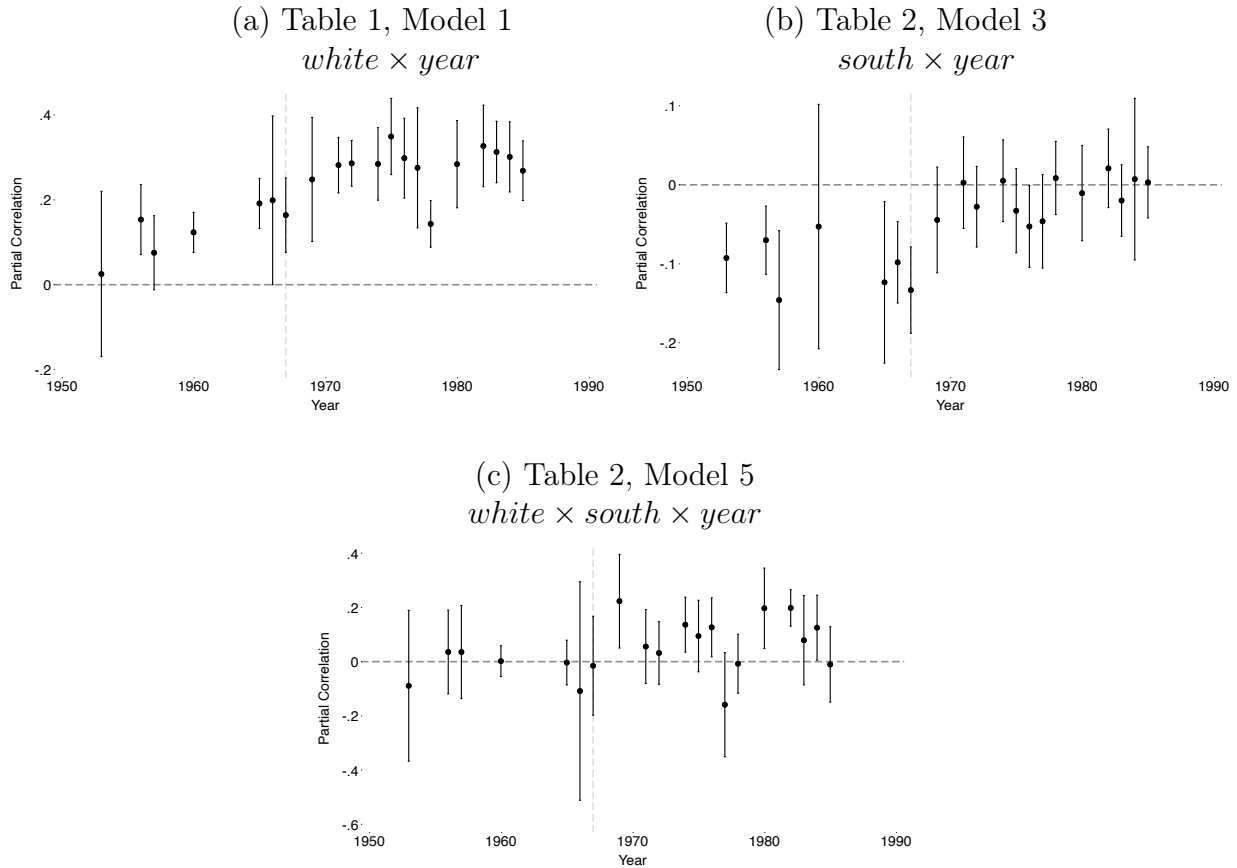
Notes: The above table presents OLS estimates of equation 4. Standard errors are heteroskedastic robust to regional-clustering. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

F Dynamic Estimates

The main paper presents estimates of the pre-post (inductively determined) punitive turn differences by race and geography in punitive attitudes. The estimation pools pre and post changes into average relationships. Here, I unpack the dynamics of those averages and present plots of individual survey year effects over time plots to show whether and how those estimated relationships change.

To do so, I interact indicators of the survey-year with race and region variables. I estimate for all years to capture total effects for each year, rather than omitting a base year to which the other estimates are compared. To better visualize the dynamics, I present the analysis as a series of plots in Figure F1. Each plot represents the coefficient estimates from a single specification. In plots (a) and (b), the results are total effects. In plot (c), the estimates are heterogeneous relationships that account for whether White respondents in the South differed from White respondents, generally, and Black respondents in the South.

Figure F1: Dynamic relationship in punitive attitudes by race and region



Notes: The above plots present estimates of partial correlations. Each plot presents estimates from a single model with the main parameter of interest interacted with individual survey-year indicators.

In plot (a), where the coefficients are around 10% 1967, afterwards they are nearly all twice as large. The range of those estimates is quite narrow, suggesting that the racial heterogeneity appeared, and remained stable thereafter. In plot (b), a similar pattern obtains. Where the pre-turn relationship between region and punitiveness amongst White respondents is inconsistently negative (approximately -15 percentage points), afterwards the relationship is half as small and consistently located around zero. Moreover, there is no dramatic trend suggesting that the regional relationship evolved slowly over time or attenuated. Instead,

the point estimates are quite stable. Finally, this is also true in plot (c) that evaluates the triple interaction. There is a stable null relationship pre-1967, and, although noisy, a positive moderation afterwards exhibiting relative stability.

G Parallel Pre-1967 Trends

The paper presents a set of descriptive facts about racial and geographic patterns in punitive opinion. Given the lack of a randomized or quasi-randomized experiment, it is extremely difficult to make a causal claim about *precisely* why race and geography played the role that they did in the punitive turn. This is compounded by the bundled nature of the temporal (i.e., post turn) treatment.

More thoroughly, in order to treat the estimated relationships in the main paper as causal, it's necessary to assume that—conditional on the covariates—the change in death penalty support would have been the same for these racial sub-populations after 1967 in the absence of the changes in the period. In addition, one needs to define *what* the theoretical quantity is that is being captured by this year as a temporal “treatment.” Anything about this year that affects White people (differentially from Black people, or in the South differentially from the non-South) constitutes a potential treatment. Nevertheless, demonstrates that White attitudes in the South and non-South were parallel prior to 1967, and trends in Black-White differences in the South as compared to non-South were also parallel. Finally, in the case of the Stable Unit Treatment Value Assumption (SUTVA), I must assume away geographic interference, for example, that Black civil and voting rights didn't cause people to move from or to the South (the most plausible form of interference).

Still, readers might be interested in whether Black and White respondents and by region experienced different trends in their punitive attitudes prior to the inductively determined turn. To examine this, I present the results from a formal test that trends in death penalty support were following similar trends by race and geography in the period prior to 1967. When a counterfactual parallel trends assumption is invoked, it is fundamentally untestable—as it is about counterfactual trends that can never be observed. However, pre-treatment trends can be potentially dispositive.

Formally, I use OLS to estimate

$$Pr(support_{irt}) = \beta_1 T + \beta_2(south_r \times T) + \beta_3(white_i \times T) + \quad (1)$$

$$\beta_4(white_i \times south_r \times T) + \phi X_{zirt} + \epsilon_{irt} \quad (2)$$

where T is a linear time trend (centered at zero in 1967), X is a matrix of z covariates including separate indicators for *south* and *white*. The residual category is a non-Southern Black respondent. In addition, I estimate the above restricted to White respondents only (thus dropping the *white* term and its interactions). Various parameters in the models estimated in the paper allow me to see the combined level and trend differences in the pre-period. Here I can separate those level differences from differing *trends* (albeit parametrically assumed linear trends), which are the primary threat to inference.

Model 1 of Table G1 shows that White respondents were, in level terms, were more supportive of the death penalty than Black respondents. Crucially, however, I find no *differential* pre-1967 trends between respondents by race and region. The final interaction with T is very small in magnitude and statistically indistinguishable from zero. Moreover, when I consider the White-only sample in column 2, I once again I find that the magnitude of the differential trend for Whites in the South relative to the non-South is small (a tenth of one percentage point) and statistically indistinguishable from zero. The results provide evidence that there were not statistically nor substantively meaningful differences in trends in punitive attitudes by race and region prior to the punitive turn.

Table G1: Death penalty support by race and geography pre-1967

	% Support Death Penalty	
	(1)	(2)
T	-0.026*** (0.0064)	-0.018*** (0.0038)
South	-0.46*** (0.13)	-0.47** (0.14)
White	0.19*** (0.032)	
White $\times$ T	0.0087* (0.0038)	
South $\times$ T	-0.0044 (0.0058)	-0.0040 (0.0032)
White $\times$ South $\times$ T	0.0010 (0.0050)	
Homicide rate (W)	0.067 (0.042)	0.065 (0.042)
Homicide rate (NW)	0.0086** (0.0033)	0.0084** (0.0034)
Year Period	1953-1965	1953-1965
Sample	W&B	White-only
Survey FE	✓	✓
Controls	✓	✓
Crime Control	16005	16005

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above equation estimates equation 1 for the pre-1967 period only.

H Crime Rates

In the main paper, I present and utilize race and region homicide rates as an indicator of violent crime. Homicides are the crime relevant to the death penalty, they are available by the separate race of victims, and they are available prior to the punitive turn. Thus, the value of these trends is that they allow me to examine not just trends by region, but also trends by race, which speaks to which racial groups were experiencing the most crime as well as which regions. The downside of using homicide rates is that homicide is just one aspect of crime, though it is a crime least likely to be manipulated in official statistics (see e.g., (Eckhouse, 2021)).

Table H1: Sources of race-by-region homicide totals

Year	Report	Publication Year	Start Page
1986	Vital Statistics of the United States, 1986, Volume II—Mortality, Part B	1988	196
1984	Vital Statistics of the United States, 1984, Volume II—Mortality, Part B	1987	196
1982	Vital Statistics of the United States, 1982, Volume II—Mortality, Part B	1986	196
1980	Vital Statistics of the United States, 1980, Volume II—Mortality, Part B	1985	156
1978	Vital Statistics of the United States, 1978, Volume II—Mortality, Part B	1981	7-152
1976	Vital Statistics of the United States, 1976, Volume II—Mortality, Part B	1979	7-152
1974	Vital Statistics of the United States, 1974, Volume II—Mortality, Part B	1976	7-168
1972	Vital Statistics of the United States, 1972, Volume II—Mortality, Part B	1975	7-168
1970	Vital Statistics of the United States, 1970, Volume II—Mortality, Part B	1974	7-168
1968	Vital Statistics of the United States, 1968, Volume II—Mortality, Part B	1971	7-129
1966	Vital Statistics of the United States, 1966, Volume II—Mortality, Part B	1968	7-134
1964	Vital Statistics of the United States, 1964, Volume II—Mortality, Part B	1966	7-132
1962	Vital Statistics of the United States, 1962, Volume II—Mortality, Part B	1964	7-114
1960	Vital Statistics of the United States, 1960, Volume II—Mortality, Part B	1963	7-125
1958	Vital Statistics of the United States, 1958, Volume II, Mortality Data	1960	322
1956	Vital Statistics of the United States, 1956, Volume II, Mortality Data	1958	184
1954	Vital Statistics of the United States, 1954, Volume II, Mortality Data	1956	174
1952	Vital Statistics of the United States, 1952, Volume II, Mortality Data	1955	96
1950	Vital Statistics of the United States, 1950, Volume III, Mortality Data	1953	246
1946	Vital Statistics of the United States, 1946, Part II, Natality and Mortality Data for the United States Tabulated by Place of Residence	1948	250
1942	Vital Statistics of the United States, 1942, Part II, Natality and Mortality Data for the United States Tabulated by Place of Residence	1944	217
1940	Vital Statistics of the United States, 1940, Part I, Natality and Mortality Data for the United States Tabulated by Place of Occurrence with Supplemental Tables for Hawaii, Puerto Rico, and the Virgin Islands	1943	268

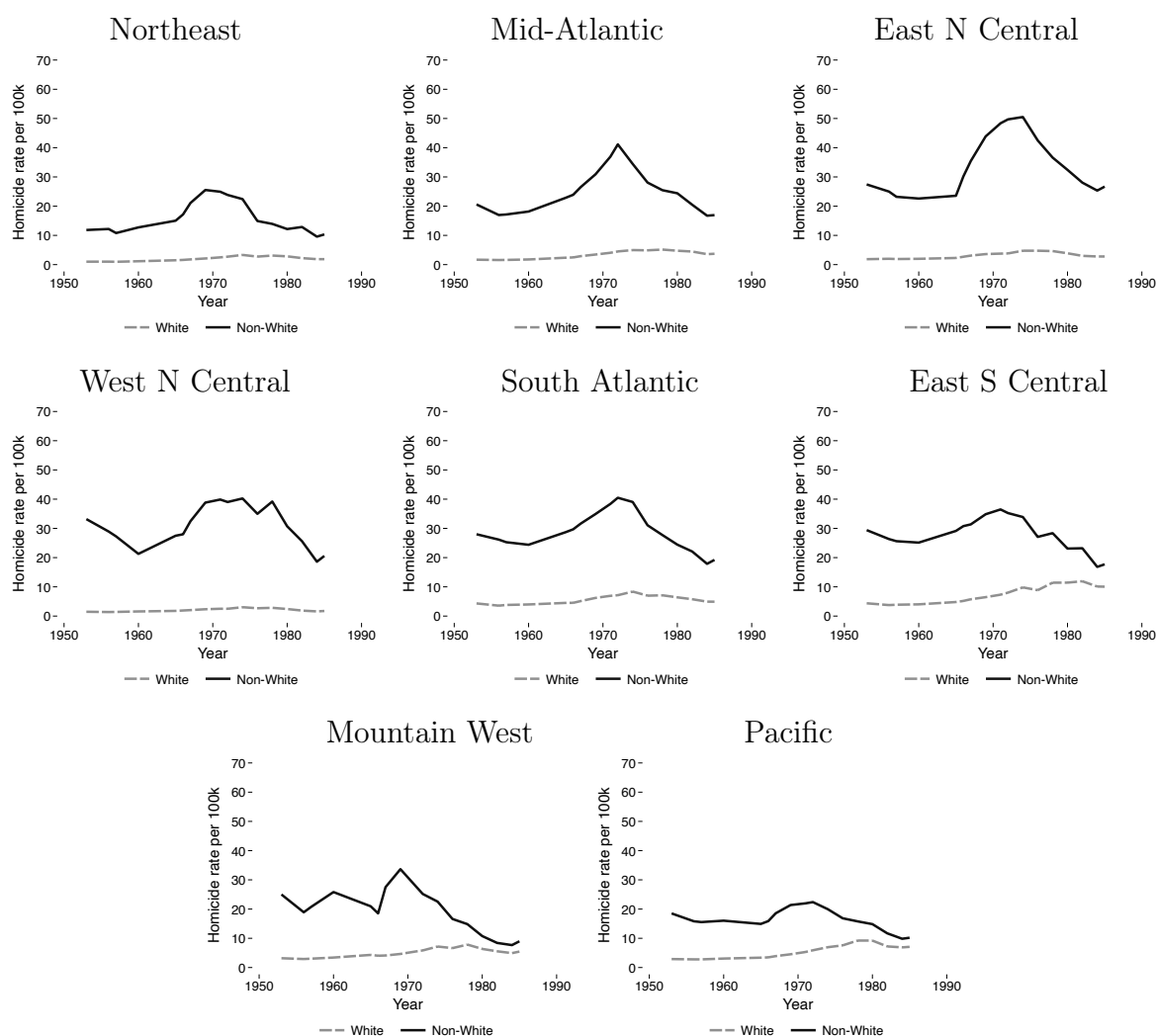
Notes: Regional homicide rates were constructed by aggregating totals from individual state reports and normalizing by the relevant population from NHGIS census data. I try to use place of occurrence when tables/reports are differentiated by occurrence and residence, but occurrence is not always available. Start page refers to the page on which the relevant table starts. Otherwise, I assume that people are victimized in their state of residence. Reports in many cases are available annually. Due to resource limitations, I collect reports every other year and linearly impute intermediate years.

As noted in the main paper, I collect homicide rates from vital statistics reports published by the Centers for Disease Control. The sources of the homicide rates are provided in Table H1. Due to resource limitations, I collect reports every even numbered year during my primary period of interest (1953-1985) and linearly impute odd numbered years. The data are published by state, which I aggregate to the region because region is the lowest level of geographic aggregation consistently available across my punitive attitude data. The racial breakdowns available in the reports are White and non-White, with some (but not all) years

breaking non-White into both Black and Other racial categories. In none of the relevant years are hispanic breakdowns available.

In the main paper, I use homicide victim rates per 100,000 of the race relevant population. To calculate those normalized rates, I collect decennial census data from the National Historical Geographic Information System (NHGIS). I calculate the White and non-White population, and linearly interpolate non decennial years. In some years there is a non-White population count given, while in other years I construct it from population counts across racial groups (i.e., Black, Asian, Native American). In this appendix, I also present results using the growth rate in the event that attitudes are formed, not in response to deviations from a long-run average, but instead relative to deviations from a long-run growth rate (trend).

Figure H1: Regional homicide rates by victim rate, 1953-1985

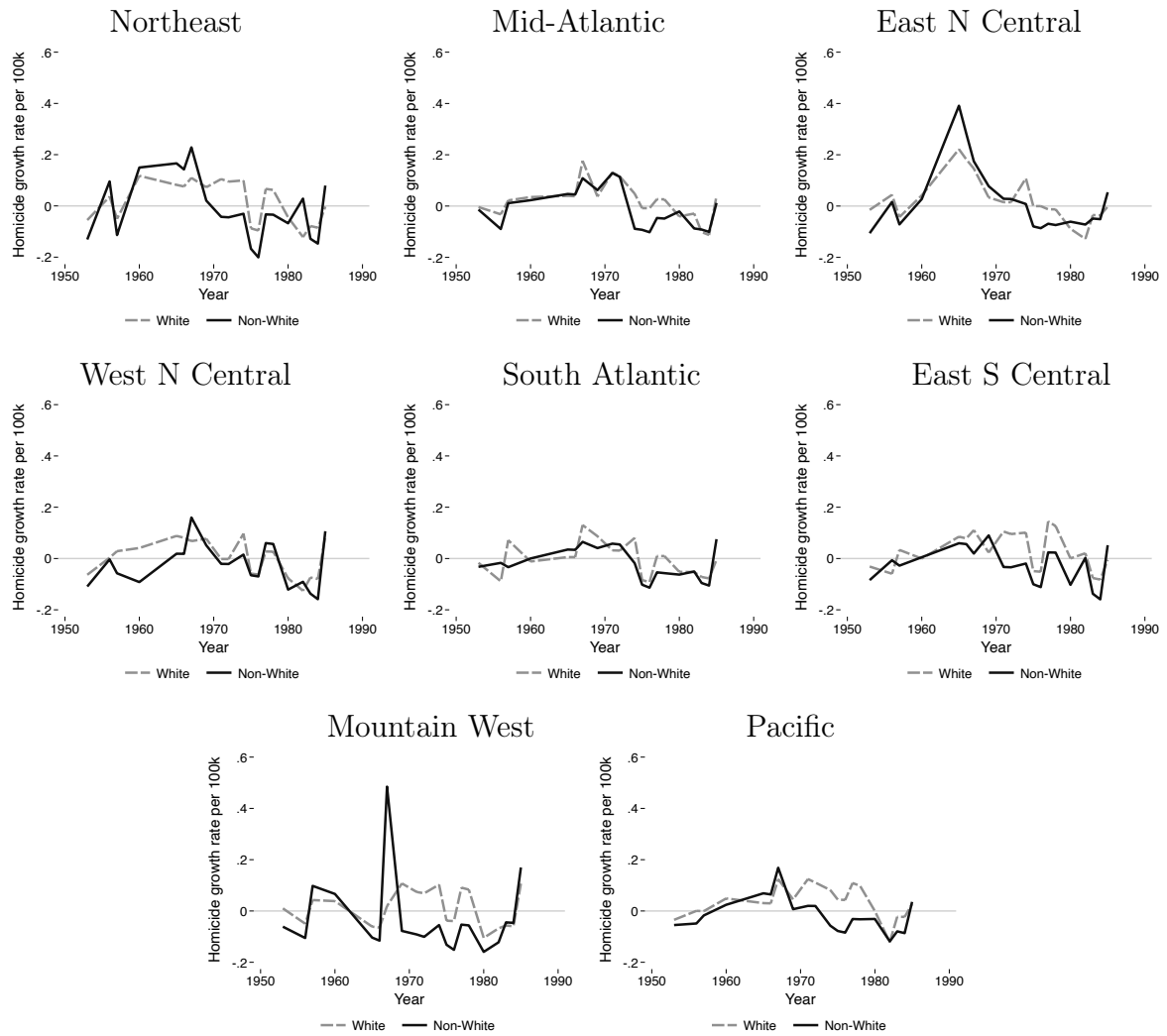


Notes: The above plots present the homicide rate by race of the victim by region. The y-axis are the same for all plots.

Figures H1 and H2 present the regional trends in the homicide rate and growth rate, respectively, by victim race. The plots consistently demonstrate that non-White victimization rates are higher in levels than White rates. However, although in levels the rates by race are different, the growth rates are much more comparable. The distinction in growth rates is that, with only some exceptions, the non-White homicide rate led the White homicide rate—growing earlier and delining earlier than.

In addition to homicide rates, in this appendix, I also use the standard UCR crime measures (Kaplan, 2021). Geographically-disaggregated indexes of violent and property crime are available from 1960 on, thus, using this measure limits the pre-turn data by 50%. This crime measure also does not capture victim race. Figure H4 presents the graphical evidence of the trends. I find few differences in trends in either violent crime or property crime between the South and non-South. In the crucial pre-1967 period, the graphical evidence displays no differences in pre-trends. In terms of violent crime, the South and non-South have the same level in the pre-period and trend the same. In terms of property crime, the South had lower crime in the pre-period, but both regions were trending slightly upwards.

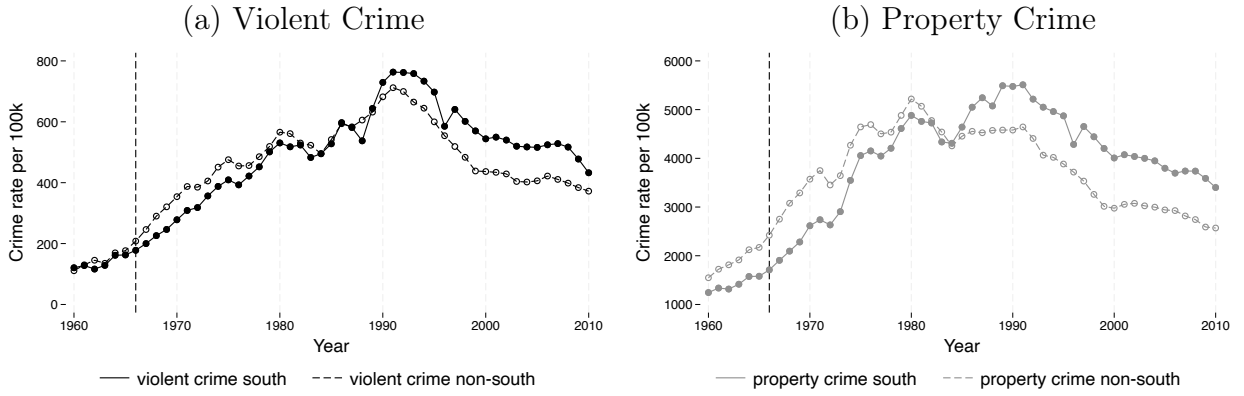
Figure H2: Regional homicide growth rates by victim rate, 1953-1985



Notes: The above plots present the homicide growth rate by race of the victim by region. The y-axis are the same for all plots.

Here I present the main results from the paper (Tables 1 and 2) with alternative measures of time-varying crime—the UCR measures of violent and property crime, and the homicide victim growth rate by race, each measured at the region. I present these in Tables H2 and H3. All tables demonstrate that the results are robust to the alternative crime measures. In addition, only the property crime rate is consistently distinguishable from zero. In the estimates in Table H3, I find that after accounting for changes in regional violent crime,

Figure H3: Regional crime rates, 1960-2010



Source: Kaplan (2021) .

Notes: Above plots present trends in violent crime index and property crime index for the South and non-South per 100,000. I use the *actual* crime indexes from Jacob Kaplan's cleaned version of the FBI's Uniform Crime Report data. State-level data (to construct regions) are not available prior to 1960. Note the scales are different for plots (a) and (b).

property crime increases support for the death penalty. This is suggestive of the notion that death penalty support was not merely a rational response to the crime for which the death penalty was applicable, but instead, was a more generalized reaction to changing crime rates.

Table H4 presents the results from Table 3 in the main paper restricted to respondents in cities with at least 500,000 people. The sign and significance of the results are consistent with those estimated on the full sample. However, the magnitude is much larger. White respondents were negatively responsive to the White homicide rate prior to 1967; however after the punitive turn, they became more responsive. Still, their overall punitive attitudes after the punitive turn were *negatively* related to the White homicide rate (and entirely unresponsive to the non-White homicide rate).

Table H2: Relationship between race and punitiveness post-1967 with alternative regional time-varying measures of crime (Table 1)

	% Support Death Penalty	
	(1)	(2)
White	0.17*** (0.021)	0.15*** (0.0097)
White × Post	0.11*** (0.029)	0.13*** (0.025)
Violent crime rate	-0.00024* (0.00012)	
Property crime rate	0.000025 (0.000028)	
Homicide growth rate (W)		-0.33** (0.12)
Homicide growth rate (NW)		0.20 (0.11)
Year Period	1960-85	1953-85
Race Sample	W&B	W&B
Survey FE	✓	✓
Controls	✓	✓
Crime Control	✓	✓
Observations	35824	40089

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents estimates of equation 3 with alternative measures of crime. Standard errors are clustered at the region. Data are weighted using post-stratification census constructed weights (Appendix E).

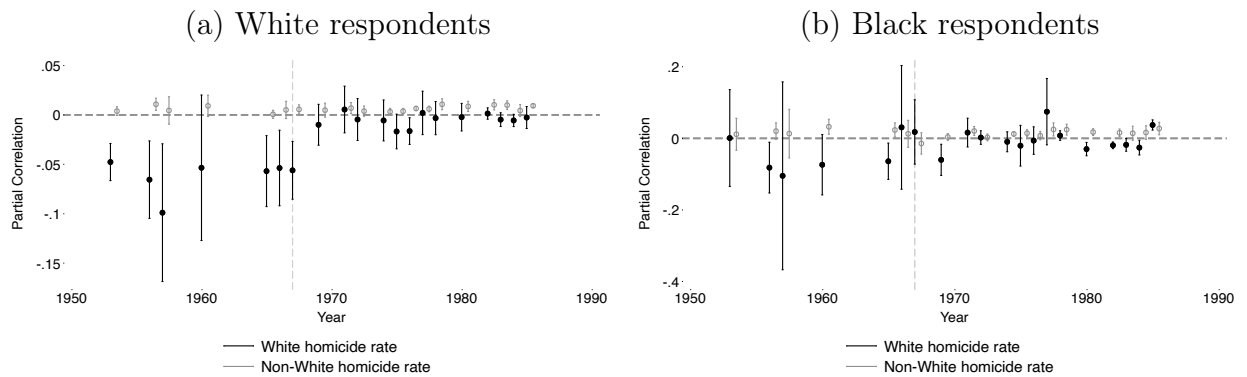
Table H3: Relationship between race, region and punitiveness post-1967 with alternative regional time-varying measures of crime (Table 2)

	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
White	0.25*** (0.012)	0.23*** (0.0099)			0.18*** (0.037)	0.16*** (0.028)
South	-0.074* (0.035)	-0.085** (0.027)	-0.085** (0.033)	-0.100*** (0.027)	-0.056 (0.071)	-0.076 (0.058)
South $\times$ Post	0.071* (0.034)	0.068** (0.020)	0.097** (0.031)	0.096*** (0.020)	-0.0069 (0.076)	0.0023 (0.055)
White $\times$ South					-0.043 (0.054)	-0.026 (0.035)
White $\times$ Post					0.062 (0.043)	0.092** (0.034)
White $\times$ South $\times$ Post-1967					0.12* (0.060)	0.097** (0.041)
Violent crime rate	0.000049 (0.000078)		0.000045 (0.000084)		0.000042 (0.000074)	
Property crime rate	0.000018** (0.0000073)		0.000021* (0.0000089)		0.000019** (0.0000055)	
Homicide growth rate (W)		-0.19 (0.13)		-0.20 (0.12)		-0.20 (0.13)
Homicide growth rate (NW)		0.058 (0.14)		0.056 (0.14)		0.044 (0.15)
Year Period	1960-85	1953-85	1960-85	1953-85	1960-85	1953-85
Race Sample	W&B	W&B	W-only	W-only	W&B	W&B
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control	✓	✓	✓	✓	✓	✓
Observations	35824	40089	31818	35749	33214	38730

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents estimates of equation 3 with alternative measures of crime. Standard errors are clustered at the region. Data are weighted using post-stratification census constructed weights (Appendix E).

Figure H4: Dynamic relationship between homicide rates and death penalty support



Notes: The above plots each present the total effects by year for the relationship between regional homicide rates and death penalty support. Thus, there is no omitted year. Each plot presents estimates for White and non-White homicide rates from a single specification on respondents from the given racial group. The vertical dashed line is at 1967.

Table H5 examines how responsiveness to the homicide rate changed by region amongst only respondents in large cities. I find no evidence amongst White respondents that punitive attitudes in the South become more closely coupled with the homicide rate (of either race). Thus, these results do not suggest that the reason the South became more punitive is because

Table H4: Death penalty support as a function of heterogenous responses to race-specific regional crime before to after 1967 by race, large cities only (Table 3)

	% Support Death Penalty		
	(1)	(2)	(3)
Homicide rate (W)	-0.15*** (0.034)	-0.20** (0.066)	-0.24*** (0.041)
Homicide rate (NW)	0.0082* (0.0041)	0.0066 (0.012)	0.0030 (0.0055)
Homicide rate (W) $\times$ Post	0.11*** (0.023)	0.19*** (0.036)	0.20*** (0.029)
Homicide rate (NW) $\times$ Post	-0.0028 (0.0024)	-0.00087 (0.010)	0.00095 (0.0055)
White			-0.20 (0.20)
White $\times$ Post			0.38 (0.21)
Homicide rate (W) $\times$ White			0.096*** (0.023)
Homicide rate (NW) $\times$ White			0.0055 (0.0071)
Homicide rate (W) $\times$ White $\times$ Post			-0.095*** (0.023)
Homicide rate (NW) $\times$ White $\times$ Post			-0.0037 (0.0069)
Year Period	1953-85	1953-85	1953-85
Race Sample	W-only	B-only	W&B
Survey FE	✓	✓	✓
Controls	✓	✓	✓
Crime Control	✓	✓	✓
Observations	8096	1690	9786

Notes: The above table presents OLS estimates of equation 3 with additional interactions of race-by-region homicide rate per 100,000 of the race relevant population. Standard errors are heteroskedastic robust to regional clustering. Data are weighted using post-stratification census weights (Appendix E). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

people in the South were differentially responsive to regional changes in crime, as measured by the homicide victimization rate.

Table H5: Death penalty support as a function of heterogenous responses to race-specific regional crime before to after 1967 by race and region, large cities only (Table 3)

	% Support Death Penalty	
	(1)	(2)
South	0.087 (0.046)	-0.059 (0.048)
Homicide rate (W)	-0.072** (0.027)	-0.092 (0.057)
Homicide rate (NW)	0.0073*** (0.0018)	0.0033 (0.0072)
Homicide rate (W) $\times$ Post	0.048* (0.023)	0.060 (0.047)
Homicide rate (NW) $\times$ Post	-0.0014 (0.0017)	0.0020 (0.0064)
Homicide rate (W) $\times$ South	0.024 (0.023)	0.12 (0.064)
Homicide rate (NW) $\times$ South	-0.0051 (0.0029)	-0.011 (0.0063)
Homicide rate (W) $\times$ South $\times$ Post	-0.014 (0.021)	-0.097 (0.055)
Homicide rate (NW) $\times$ South $\times$ Post	0.0034 (0.0033)	0.0097 (0.0056)
Year Period	1953-85	1953-85
Race Sample	W-only	B-only
Survey FE	✓	✓
Controls	✓	✓
Crime Control	✓	✓
Observations	35749	4340

Notes: The above table presents OLS estimates of equation 3 with additional interactions of race-by-region homicide rate per 100,000 for the race relevant population. Standard errors are heteroskedastic robust to regional clustering. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd= 0.48). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

I Black Respondents-Only Results

In this appendix, I consider the South-non-South differences in Black support for the death penalty pre-post 1967. I find that the differential post-1967 response by Black people in the south was small—1 percentage point—and statistically indistinguishable from zero at conventional levels (Table I1). Thus, there is little evidence of regional differences in the pre-to-post punitive turn death penalty support amongst Black people. The dynamic relationship plotted in Figure I1 does not suggest a trend hiding behind the aggregated relationship of Table I1.

Table I1: Death penalty support amongst Black respondents only as a function of geography pre to post-1967

	% Support Death Penalty	
	(1)	(2)
South	-0.056* (0.024)	-0.050* (0.023)
South $\times$ Post	-0.015 (0.037)	-0.011 (0.034)
Homicide rate (W)		-0.0037 (0.0022)
Homicide rate (NW)		0.00034 (0.0010)
Year Period	1953-85	1953-85
Survey FE	✓	✓
Controls	✓	✓
Crime Control		✓
Observations	4340	4340

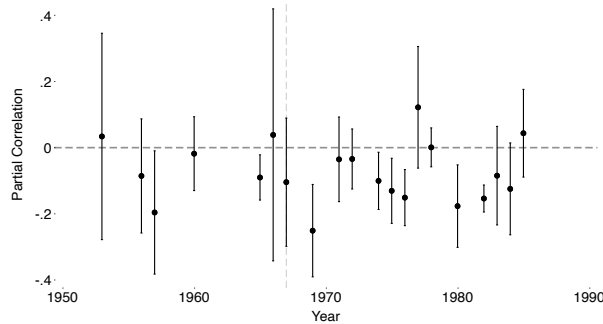
* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents estimates of equation 3 for the sub-sample of black respondents only. Standard errors are clustered at the region. Data are weighted using post-stratification census constructed weights (Appendix E).

Figure I1: Dynamic relationship for region for Black respondents only

(a) Table I1, Model 1

south $\times$ year

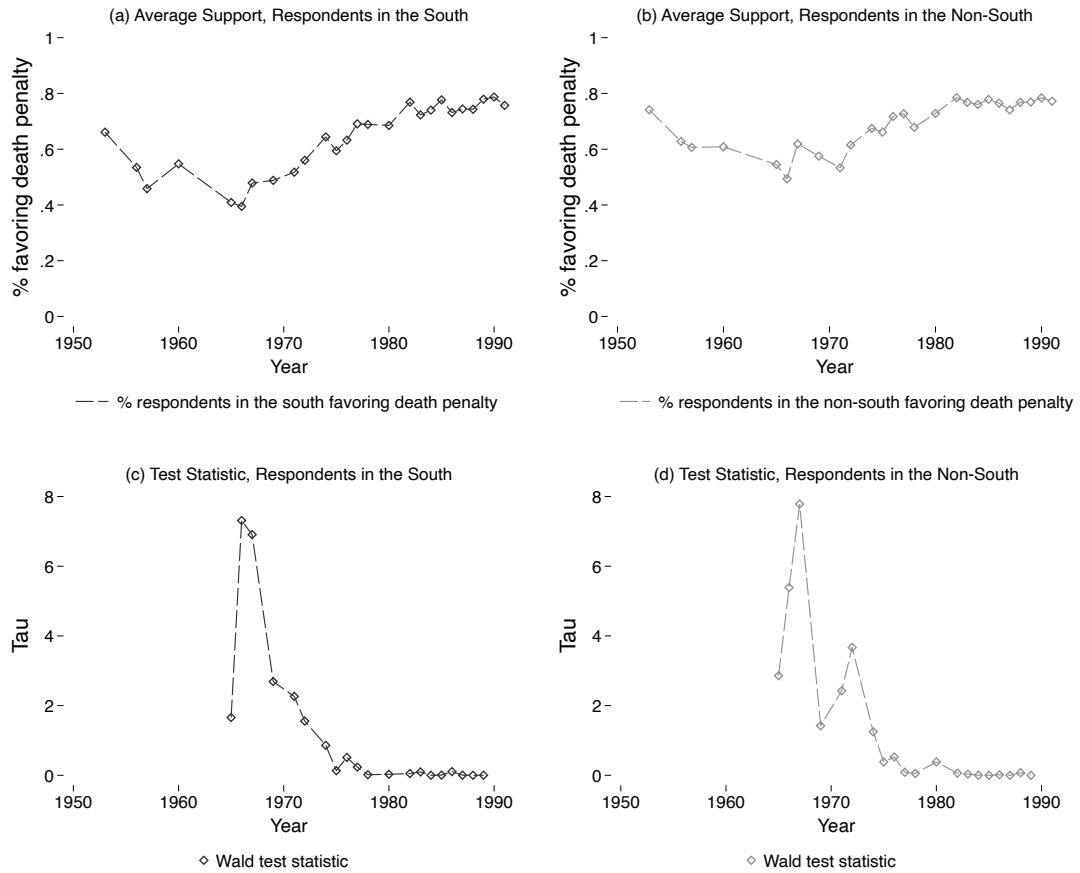


Notes: The above plots present estimates of partial correlations for Black respondents only. The plot presents estimates from a single model with the main parameter of interest interacted with individual survey-year indicators. These are total effects with no omitted year.

J Results for the Regional Structural Break

In this appendix, I present the results from estimating the structural break tests by geography (South as compared to the non-South). The graphical evidence is presented in Figure J1. In the case of the South and other regions, I find that 1967 is the most likely year of the structural break. This visual evidence is confirmed by the same structural break tests conducted in the main paper on the aggregate trend and the race-specific trends. I fail to reject the null hypothesis of a single structural break (at the 5% level), and estimate 1967 as the most likely year in the case of both regions.

Figure J1: Structural break in support for the death penalty by race including with un-weighted data, 1936-1985



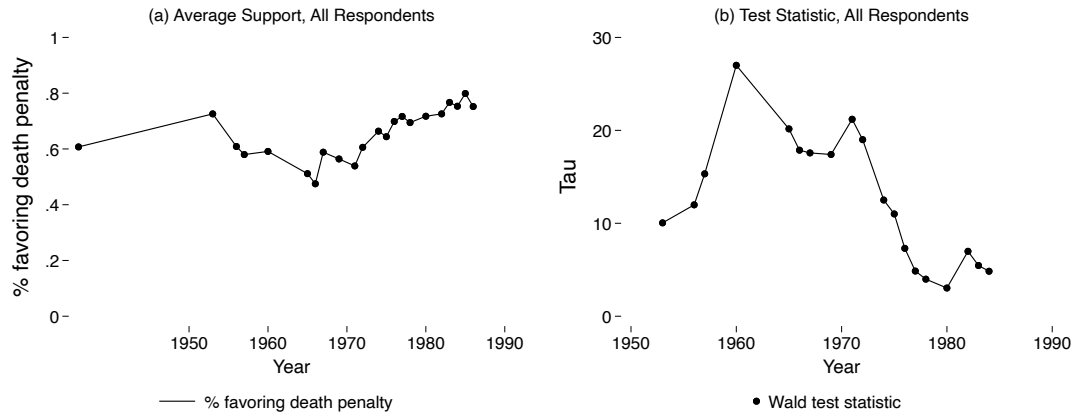
Notes: The above plots (a) and (b) show the population weighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plots (c) and (d) present the test statistic from the Wald supremum test for a single structural break at each year against the null hypothesis of no structural break.

K Results Including 1936

In the paper, I use data from as early as 1953. However, as I note in the paper, and indicate in Appendix A, there is one earlier survey that includes the question about the death penalty in the case of murder: a survey from 1936. The challenge in using this survey is both in applying survey weights and in the lack of comparable covariates. In this appendix, I include the 1936 survey in the results using unweighted data and any covariates that are available on this and other surveys comparably.⁵

One of the challenges with including data from 1936, beyond those noted above, is that there is a large gap—17 years—between 1936 and the next available year of data, 1953. In no other part of the series is there a gap of such magnitude.

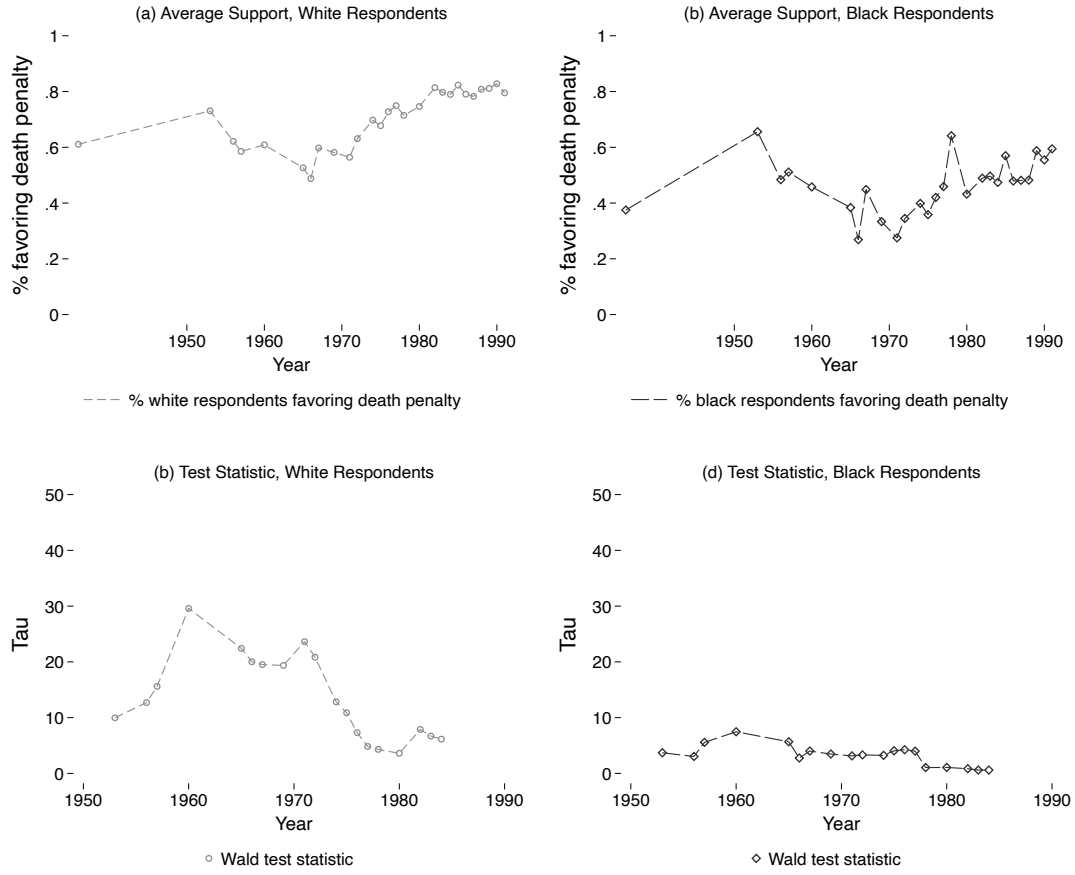
Figure K1: Structural break in aggregate support for the death penalty with unweighted data, 1936-1985



Notes: The above plot (a) shows the unweighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plot (b) presents the Wald test statistic for a single structural break at each year against the null hypothesis of no structural break. The vertical line indicates the most likely break year.

⁵The covariates are: a binary indicator for male, a set of region indicators (as used in the main analysis of the paper), and a set of binary age indicators. The time varying covariate for crime is not available as early as 1936, so I forgo re-estimating those models as the inclusion of 1936 has no effect on those results.

Figure K2: Structural break in support for the death penalty by race including with un-weighted data, 1936-1985



Notes: The above plots (a) and (b) show the unweighted trends in the percentage of respondents indicating support for the death penalty in the case of murder. Plots (c) and (d) present the Wald test statistic from the test for a single structural break at each year against the null hypothesis of no structural break. As the result of standard trimming, there are no test statistics calculated before the 1950s data enters.

Table K1: Death penalty support as a function of race pre to post-1967 with unweighted data including 1936

	% Support Death Penalty
	(1)
White	0.14*** (0.011)
White $\times$ Post	0.13*** (0.021)
Year Period	1936-85
Race Sample	W&B
Survey FE	✓
Controls	✓
Crime Control	
Observations	40197

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Table K2: Death penalty support as a function of race and geography pre to post-1967 with unweighted data including 1936

	% Support Death Penalty		
	(1)	(2)	(3)
South	-0.13*** (0.018)	-0.12*** (0.018)	-0.099** (0.032)
South $\times$ Post	0.078** (0.023)	0.10*** (0.022)	0.00040 (0.041)
White			0.14*** (0.0038)
White $\times$ South			-0.025 (0.019)
White $\times$ Post			0.10*** (0.017)
White $\times$ South $\times$ Post-1966			0.11*** (0.025)
Year Period	1936-85	1936-85	1936-85
Race Sample	W&B	W-only	W&B
Survey FE	✓	✓	✓
Controls	✓	✓	✓
Crime Control			
Observations	40197	35845	40197

Notes: The above table presents OLS estimates of equation 4. Standard errors are heteroskedastic robust to regional-clustering. * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

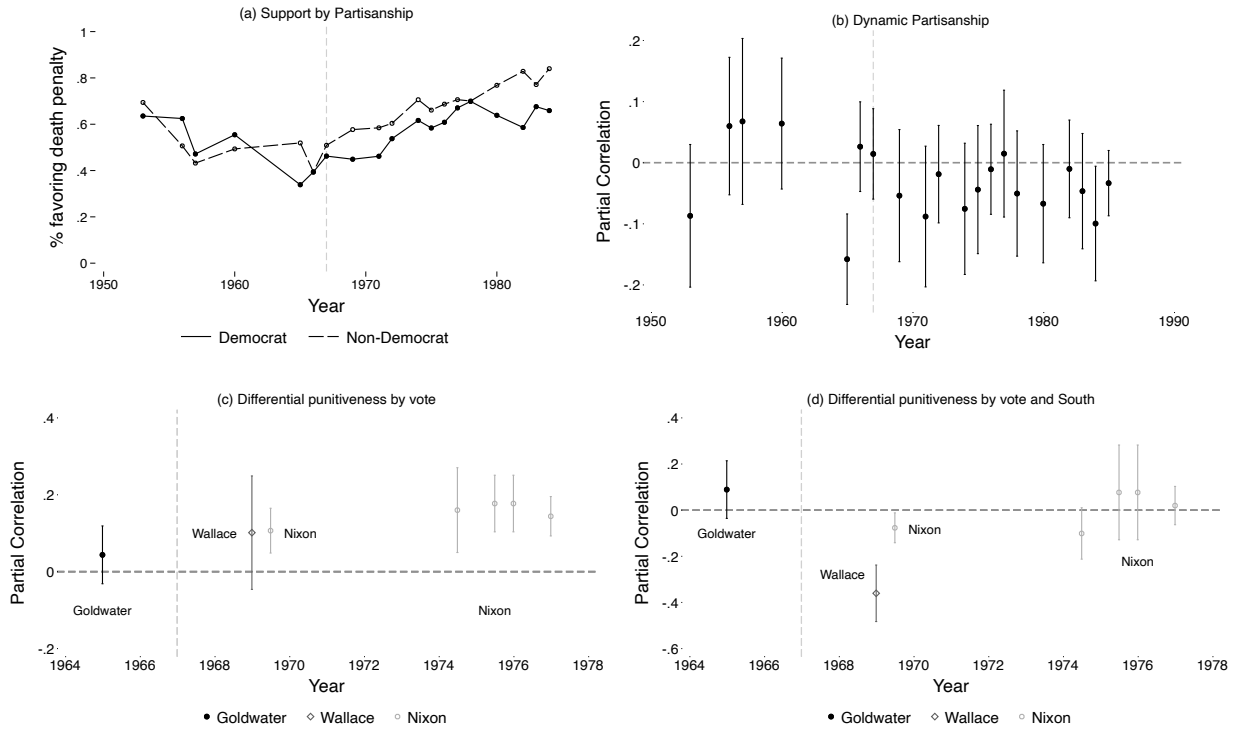
L Additional Results for Partisanship and Punitiveness

This appendix describes the measurement of partisanship and presents additional partisan-related analyses.

In terms of measurement, the question wording of the partisanship question is: “As of today, do you consider yourself. . . ?” Only in 1967 was the question wording different, asking “As of today, which party has your best interests at heart?” The 1967 question and the GSS questions ask about strength of affiliation (i.e., “strong Democrat” or “lean Democrat”), while the others do not.

I also consider the vote support for three Presidents that used significant law and order rhetoric. The candidates are Barry Goldwater, who ran in 1964; George Wallace, who ran in 1968; and Richard Nixon who ran in 1968 and 1972. Law and order was by no means the only policy on which these candidates ran, their platforms were certainly distinct, and they faced off against different candidates. However, law and order was an important issue for each candidate. It must be noted that I do not have earlier Nixon vote information, and that Wallace and Nixon ran against each other in 1972. Given that, in the estimation I consider having voted for either candidate.

Figure L1: Dynamic relationship between partisanship and punitiveness, 1953-1985



Notes: The above plots present the trends in punitiveness by partisanship (plot a), point estimates of the total effect from a single specification (plot b), individual estimates of presidential vote and punitiveness from separate specifications for each candidate (plot c), and differential by south (plot d).

In the candidate specific responses, I exclude respondents who do not recall their vote, or who did not or were unable to vote for a given election. I include questions from both the survey in the year immediately following the Presidential election and more distant retrospective questions (available from the GSS only). For example, the GSS asks about vote choice in 1972 from as late as 1977. The Gallup question wording is: “In the election in [date], when [candidate] ran against [candidate], did things come up which kept you from voting, or did you happen to vote? For whom?” The GSS question wording is: “In [date], you

remember that [candidate] ran for President on the Democratic ticket against [candidate] for the Republicans. Do you remember for sure whether or not you voted in that election? Did you vote for [candidate] or [candidate]??”

I present the results in plots c and d of Figure L1 and Table L1. I find that White respondents who voted for one of the law and order candidates are more likely to support the death penalty (plot c). However, I do not find consistent regional variation in that support. Wallace supporters in the South were significantly *less* supportive of the death penalty, while for most other candidates in most years, there is no regional moderation that is distinguishable from zero.

Table L1: Heterogeneity in death penalty support by region and partisanship for particular Presidential vote shares

	% Support Death Penalty		
	(1)	(2)	(3)
South	-0.078 (0.21)	-2.27*** (0.20)	-0.060 (0.059)
Goldwater vote	0.040 (0.048)		
Goldwater vote $\times$ South	0.077 (0.066)		
Wallace vote		0.27*** (0.056)	
Wallace vote $\times$ South		-0.31*** (0.081)	
Nixon vote			0.16*** (0.024)
Nixon vote $\times$ South			-0.011 (0.027)
Homicide rate (W)	-0.035 (0.077)	0.71*** (0.050)	0.014 (0.013)
Homicide rate (NW)	-0.0048 (0.0037)	0.081*** (0.0064)	0.0012 (0.0041)
Year	1965	1969	1969-77
Race Sample	W-only	W-only	W-only
Controls	✓	✓	✓
Crime	✓	✓	✓
Observations	1923	430	3860

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents OLS estimates of equation 3. The years are the years that the questions about Presidential vote were asked. They may not be the same year as the actual campaign.

M Additional Results for Urban and Punitiveness

Is it the case that urban environments, where crime is largest are driving increased punitiveness? This conjecture is rooted in the idea that genuine victimization risk, shaped by proximity to violence, which is higher in very urban areas, is the source of punitiveness. If it's the case that some urban areas—like those in the South—are more dangerous, or that the victimization risk (or elasticity relative to the baseline risk) is higher for certain racial groups, then urban areas could be associated with increased punitiveness and with heterogeneity by race and region.

Table M1: Heterogeneity in death penalty support by race, region and urban, 1953-1967

	% Support Death Penalty				
	(1)	(2)	(3)	(4)	(5)
Urban	0.052** (0.016)	0.049** (0.016)	0.041* (0.020)	0.033 (0.022)	0.014 (0.061)
White	0.23*** (0.0096)	0.15*** (0.014)	0.23*** (0.0095)		0.13*** (0.025)
South	-0.039** (0.015)	-0.039** (0.015)	-0.075** (0.029)	-0.092** (0.029)	-0.084** (0.028)
White × Post		0.14*** (0.033)			0.17*** (0.042)
South × Post			0.051* (0.026)	0.087** (0.025)	0.069** (0.026)
White × Urban					0.025 (0.066)
South × Urban					-0.042 (0.063)
Urban × Post-1967	-0.060*** (0.016)	-0.0051 (0.029)	-0.051** (0.019)	-0.038* (0.016)	0.034 (0.072)
White × Urban × Post		-0.056* (0.028)			-0.086 (0.073)
South × Urban × Post			0.050* (0.024)	0.028 (0.036)	0.083 (0.070)
White × South × Urban × Post					0.0040 (0.045)
Year	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W&B	W-only	W&B
Controls	✓	✓	✓	✓	✓
Crime Control					
Observations	40089	40089	40089	35749	40089

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents OLS estimates of an augmented version of equation 3. Standard errors are heteroskedastic robust clustered at the region. Data are weighted using post-stratification census weights (Appendix E).

Ideally, I would have data on individuals by city and urban-specific crime rates along with punitive attitudes. Unfortunately, this data is not available. I therefore use a proxy for cities experiencing more crime by using a measure of whether respondents in my sample live in the largest cities—those with 500,000 or more residents.⁶ This measure is available across both Gallup and GSS surveys. A measure of larger cities is not available. For reference, in 1970, the population of Portland, OR was around 380,000; the population of Atlanta, GA was around 490,000; the population of St. Louis, MO was around 620,000; the population of Washington, DC was around 760,000; and the population of Los Angeles, CA was around 2.8 million. There are many aspects to being a city of this size, and crime is just one aspect of that (and may display significant variation across cities of that size and overtime).

⁶The next population category is 100,000 to 500,000.

Table M2: Heterogeneity in death penalty support by race, region and urban including time-varying crime, 1953-1967

	% Support Death Penalty				
	(1)	(2)	(3)	(4)	(5)
Urban	0.049** (0.015)	0.045** (0.014)	0.039* (0.020)	0.031 (0.022)	0.014 (0.060)
White	0.23*** (0.0098)	0.15*** (0.014)	0.23*** (0.0096)		0.13*** (0.025)
South	-0.051** (0.016)	-0.052** (0.016)	-0.081** (0.029)	-0.100** (0.030)	-0.091** (0.028)
White $\times$ Post		0.14*** (0.031)			0.17*** (0.042)
South $\times$ Post			0.044 (0.032)	0.077** (0.032)	0.061* (0.032)
White $\times$ Urban					0.023 (0.065)
South $\times$ Urban					-0.041 (0.063)
Urban $\times$ Post-1967	-0.059*** (0.015)	0.0026 (0.029)	-0.052** (0.019)	-0.040** (0.016)	0.037 (0.072)
White $\times$ Urban $\times$ Post		-0.064* (0.027)			-0.090 (0.073)
South $\times$ Urban $\times$ Post			0.052* (0.023)	0.031 (0.035)	0.081 (0.071)
White $\times$ South $\times$ Urban $\times$ Post					0.0060 (0.045)
Homicide rate (W)	0.0059 (0.0048)	0.0064 (0.0050)	0.0055 (0.0043)	0.0066 (0.0050)	0.0057 (0.0044)
Homicide rate (NW)	-0.0011 (0.00066)	-0.0012 (0.00069)	-0.00098 (0.00061)	-0.0012* (0.00062)	-0.0010 (0.00061)
Year	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W&B	W-only	W&B
Controls	✓	✓	✓	✓	✓
Crime Control	✓	✓	✓	✓	✓
Observations	40089	40089	40089	35749	40089

* $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Notes: The above table presents OLS estimates of equation 3 for the sub-sample of black respondents only. Standard errors are clustered at the region. Data are weighted using post-stratification census constructed weights (Appendix E).

To understand the urban areas where crime was highest around the punitive turn, I examine information from the midcentury uniform crime reports (FBI, 1974)(pgs. 77-95). Using the Index of Total Crime, the highest crime Standard Metropolitan Statistical Area was Phoenix in 1973. The other top 10 were: Daytona Beach, Las Vegas, Fort Lauderdale, Fresno, San Francisco, West Palm Beach, Reno, Albuquerque, and Stockton.⁷

Table M1 presents the main analyses using an interaction between Urban (cities with more than 500,000 residents), the post punitive turn indicator (*post*), the race indicator (*White*), and the region of interest indicator (*South*).⁸ Table M2 presents the same results with the time-varying region-specific homicide rate by race. The estimation strategy asks: were punitive attitudes different among White respondents, respondents in the South, and both, when the respondents were in large urban areas? If White respondents in urban areas, or those in urban areas of the South are more punitive after 1967, it would be suggestive (though not conclusive) that localized exposure to crime is one of the roots of punitive attitudes. However, the fact that White people experienced the differential change, or Southern

⁷Phoenix's crime index was about 8,100, while Stockton's was about 6,800. For comparison, New York was about 5,400, DC about 5,200, Los Angeles about 6,000 and Detroit about 6,000.

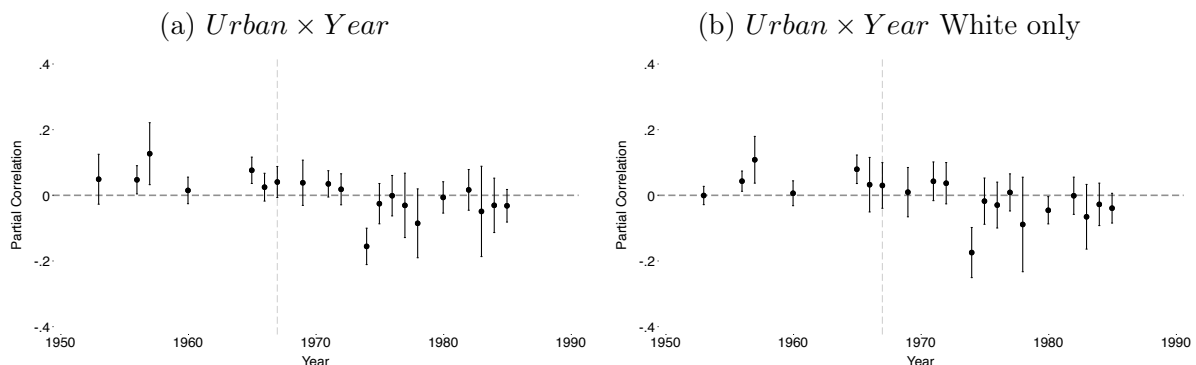
⁸The remaining aspects of the estimation are the same, except that I collapse all of the smaller city sizes into the reserved category to aid interpretation. Thus, the urban indicator is relative to all smaller cities.

White people would still require additional explanation.⁹

There is relatively limited evidence that urban has that expected relationship. Although on its own living in a city of more than 500,000 residents is associated with higher punitiveness in the pre-1967 period (by 3-4 percentage points), post-1967 the estimated relationship is negative (models 1, 3, 4), small (model 2), or not at all statistically significant (model 5). Thus, urban respondents were becoming, if anything, less punitive after 1967 than before. This is also true for White urban respondents, specifically, after 1967 by 6-10 percentage points (models 2, 5). The one place where the relationship seems potentially consistent with proximate experience of urban crime driving the relationship is that those in urban areas in the South post-1967 become more punitive by around 4 percentage points (models 3, 4). Because of the multiple cuts to the data, I am generous in thinking about statistical significance.

Obviously, one of the challenges in interpreting results that differentiate between urban and non-urban, and which collapse the post-1967 period into a single parameter estimate is that there was a well-known process of suburbanization and White flight that occurred during this period, that was in part driven by high crime and a decaying urban landscape (Frey, 1979; Kruse, 2005). If it is the case that White people most likely to have high punitiveness left urban areas because of high crime, then we would not expect the above relationship to hold.

Figure M1: Dynamic relationships between race, region and urban, 1953-1985



Notes: The above plots present estimates of dynamic partial correlations. Each plot presents estimates from a single model with the main parameter of interest interacted with individual survey-year indicators. The correlations are total effects and there is no omitted year.

Absent a true panel, evaluating this possibility is challenging. Moreover, neither Gallup nor the GSS has a “suburban” variable. However, in addition to the main estimates, I also consider a model of the dynamic relationship overtime (see Appendix F). Because White flight was a process that arguably resulted *from* high crime that might have driven punitiveness, we would expect earlier post-1967 periods to have higher punitiveness associated with urban areas, and for the relationship to weaken over time.

Figure M1 presents those dynamic plots. Indeed, there is evidence of this pattern. From 1967 to the early 1970s, the relationship between urban and punitiveness is modestly positive (plot a). Afterwards, however, the relationship is consistently more negative. Plot b suggests that this relationship is could be more pronounced amongst White respondents, as we might expect. While plots c and d provides little evidence of a consistent differential pattern overtime between how urban moderates the relationship between punitiveness and

⁹Or, again, a different response function as a consequence of baseline exposure.

the South, or the South and White combined.

One interpretation of that relationship is that those with more punitive attitudes left urban areas, leaving those with less punitive attitudes behind. An additional pattern of sorting could also be at play—in addition to a “remain” factor, cities may also have begun to draw in ideologically liberal residents towards the end of the period.

N Additional Results for Prejudice, Welfare and Punitiveness

In this appendix, I present additional details about measurement and the results examining racial prejudice, welfare support and punitive attitudes.

The existing literature suggests that White punitiveness is frequently linked to racial prejudice. To understand the role of prejudice, I focus on available surveys that ask *both* about punitiveness *and* about racial attitudes. I collect nine measures of racial prejudice across twelve surveys from 1966 to 1985. I measure prejudice along the extensive margin for ease of interpretation—if a respondent indicated the prejudicial response to any of the available nine survey questions in a given survey.

Table N1: Questions related to racial prejudice, 1953-1985

Variable	Years	Question	GSS
Black Neighbor	1966	How likely would you be to move if a Black person moved next door to you?	N
Black Neighborhood	1966	How likely would you be to move if many Black people moved to your neighborhood?	N
Interracial Marriage	1974, 1975, 1976, 1977, 1980, 1982, 1984, 1985	Do you think there should be laws against marriages between Black people and whites?	Y
Interracial Dinner	1974, 1976, 1977, 1980, 1982, 1984, 1985	How strongly would you object if a member of your family wanted to bring a Black friend home to dinner?	Y
Integrate Club	1977, 1985	If you and your friends belonged to a social club that would not let Black people join, would you try to change the rules so that Black people could join?	Y
Integrated School	1974, 1975, 1977, 1980, 1982, 1984, 1985	Would you yourself have any objection to sending your children to a school where a few of the children are of the opposite race?	Y
Neighborhood Segregation	1976, 1977, 1980, 1982, 1984, 1985	[How strongly do you agree with the following statement:] White people have a right to keep Black people out of their neighborhoods if they want to, and Black people should respect that right.	Y
Vote Black President	1974, 1975, 1977, 1978, 1982, 1983, 1985	If your party nominated a Black person for President, would you vote for him if he were qualified for the job?	Y
Bussing	1974, 1975, 1976, 1977, 1978, 1982, 1983, 1985	In general, do you favor or oppose the busing of Black and White school children from one school district to another?	Y

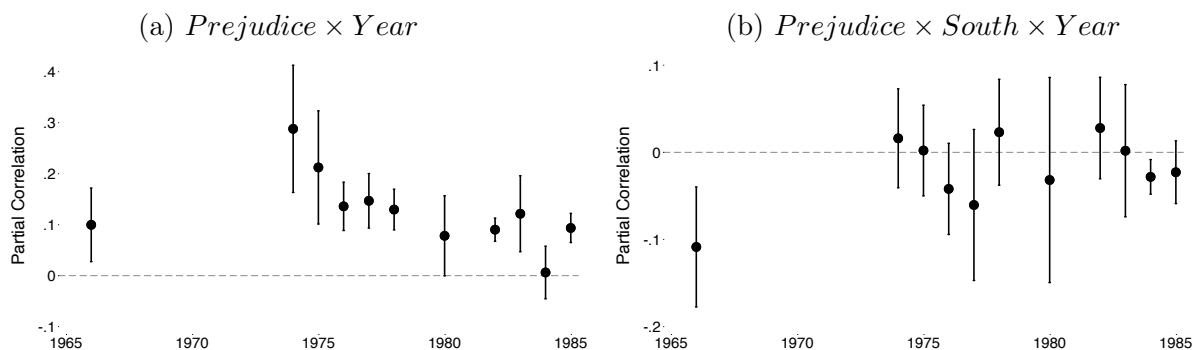
Notes: The racial terms differ by year (e.g., Black, Negro, African American).

Ideally, the same question(s) would be available both before and after the punitive turn in order to assess whether White respondents in the South more strongly associated punitiveness and prejudice from before to after 1967—the implication that derived from prejudice among White Southerners driving the punitive turn. Unfortunately, there is only one question related to prejudice from before 1967, and the question was only asked once, making inter-temporal comparisons deeply confounded by changing questions. Therefore, I examine heterogeneity in the relationship between region, prejudice and support for the death penalty, not pre-to post turn heterogeneity.

I use the following nine questions in Table N1. I focus on questions that ask as directly as possible about racial attitudes without other confounding factors (e.g., questions about driving through a particular neighborhood, or questions about sending one's child to a school dominated by another race.)¹⁰ I code the prejudice variable such that an indication of prejudice for *any* question in a given survey (e.g., agreeing with segregation or laws against interracial marriage) is coded as 1 and other avowed responses are coded as zero (I exclude don't know).

Absent substantial data from before the punitive turn, the aim with this correlational analysis is to understand whether, on average, the South is more likely to exhibit positive heterogeneity between South and prejudice. Although this on its own cannot answer whether that relationship was higher or lower in the re-turn period, it would nevertheless only be *suggestive* that punitive support is related to prejudice.

Figure N1: Relationship between racial prejudice and punitiveness by year, 1966-1985



Notes: The above plots present estimates partial correlations by year. Each plot presents estimates from one model. The estimates are total effects, thus there is no omitted year. Plot b presents the differential relationship by region, after accounting for the general prejudice relationship over time.

Figure N1 presents the dynamic relationship over time for White respondents only. I estimate the direct effect of my prejudice variable by year (plot a), and a separate model with the interaction with the South (plot b). These models present total effects, thus there is no omitted base year against which the estimates should be compared. I include the time varying regional crime control in all specifications in this appendix.

I find that White respondents who exhibit more prejudice are more likely to support the death penalty—by about 8.5 percentage points—consistent with existing literature.¹¹ However, I find little evidence that White voters in the South who hold more prejudicial attitudes are differentially more likely to support the death penalty than those in the North. After accounting for the relationship between prejudice and death penalty support in each year, the South either negatively or fails to moderate the relationship (plot b).

With only one pre-1967 measure, it's impossible to assess change in this moderation from before to after 1967 and the punitive turn. However, if anything I find that racially prejudicial White respondents in the South are less likely than their Northern counterparts to support the death penalty over the available surveys. On its own, these results cannot falsify the

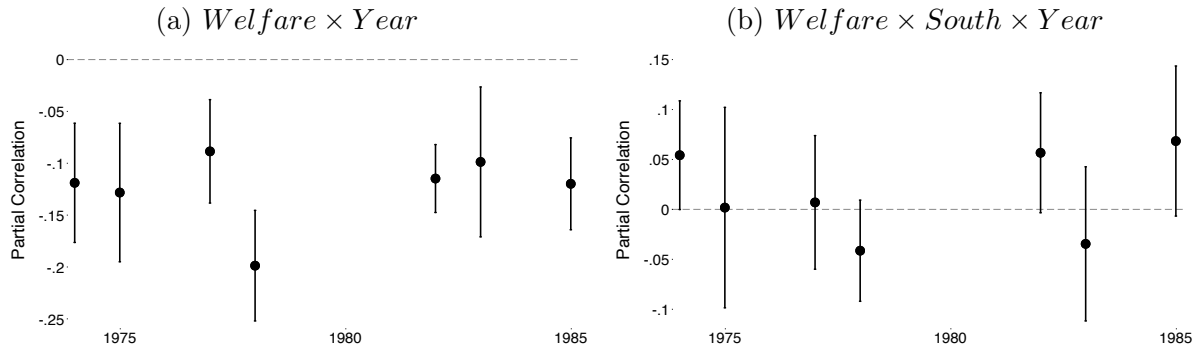
¹⁰In each of these cases respondents might have empirical beliefs about the quality of education at a school or safety in a neighborhood. In those cases we'd want to either understand the veracity of those empirical beliefs to understand racial animus, or be able to hold constant safety and education to separate the concern about racial proximity from educational quality.

¹¹The decline in the relationship is suggestive of a change in social desirability of expressing racially resentful opinions Kinder and Sears (1981).

prediction that White Southerners *changed* in the role of prejudice in their punitive attitudes. However, the lack of any differential regional relationship in the post period suggests that the relationship between prejudice and punitiveness in the pre-punitive turn period would have had to have been negative in order for a strengthened moderation play an important role.

Thus, these results indicate the expected relationship between prejudice and punitiveness, but cannot resolve the regional variation. In absolute terms, the South is no more or less likely to have a relationship between prejudice and punitiveness—on average, for all measures in all years, the relationship is basically zero. Still, it's unknown whether this relationship was significantly different in the pre-punitive turn period given the single pre-1967 survey with measures of prejudice and punitiveness—e.g., although there is a null relationship during this period, it's possible that the pre-1967 relationship was decided *negative*, indicating a pre-to-post turn *change* in the relationship.

Figure N2: Relationship between generalized welfare support and punitiveness by year, 1966-1985



Notes: The above plots present estimates partial correlations by year. Each plot presents estimates from a separate model, thus there is no omitted variable. Plot b presents the differential relationship by region, after accounting for the general welfare relationship over time.

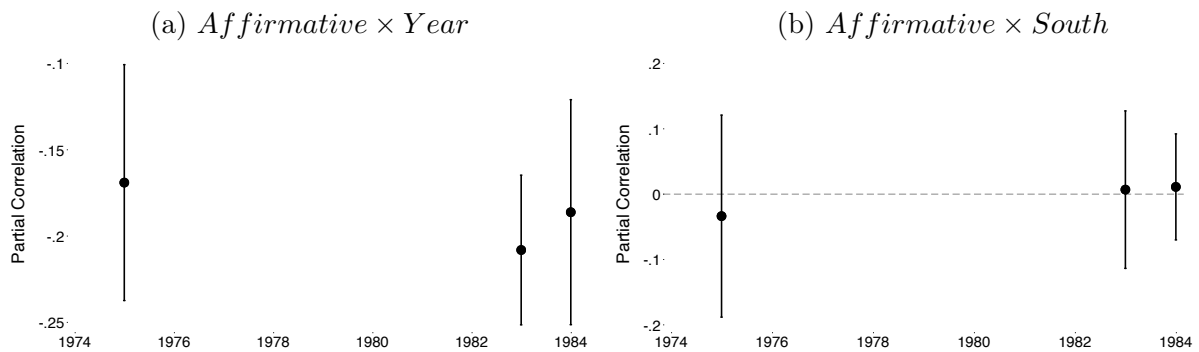
In order to understand the relationship between welfare support, race, region and punitiveness, I use two GSS question: *i*) is the government spending too much, too little, or about the right amount of money on welfare; and *ii*) Some people think that Black people have been discriminated against for so long that the government has a special obligation to help improve their living standards... Others believe that the government should not be giving special treatment to Black people... Where would you place yourself on this scale, or haven't you made up your mind on this? In the case of *i*), I code government spending as doing enough or should do more as 1, and zero if the government is doing too much. In the case of *ii*), which approximates an affirmative action question, I code as 1 if the government should help to "some extent" and zero if Black people should be given no special treatment.

Figure N2 presents the results for the relationship between welfare support, region and punitiveness amongst White respondents. Plot a shows a consistent negative relationship between support for more welfare and punitiveness from a specification absent regional heterogeneity. Respondents who believe the government is spending too much on welfare are also those more likely to support the death penalty. However, plot b shows no evidence of a negative moderated relationship for the South. Instead, White respondents in the South are more supportive of welfare policies. Those that support the death penalty in the South are not consistently more or less likely to support more government welfare. Finally, in terms of support for Black people (a measure of government support or affirmative action), I find

similar results (Figure N3). Those who support affirmative action are less likely to support the death penalty. But there is no difference in that support between White respondents in the South and non-South.

Once again, it would be ideal to be able to analyze a *change* in welfare support to best understand whether the punitive turn was accompanied by a change in the relationship between welfare support and region. Unfortunately, I can say that there is no general post-turn regional pattern consistent with a lack of welfare support being the reason for more punitive support.

Figure N3: Relationship between affirmative action/welfare support and punitiveness by year, 1966-1985



Notes: The above plots present estimates partial correlations by year. Each plot presents estimates from a separate model, thus there is no omitted variable. Plot b presents the differential relationship by region, after accounting for the general affirmative action relationship over time.

I summarize the results in the figures above in the following table. They largely confirm the evidence presented in the plots. The only exception is that I estimate a 6 percentage point difference that is statistically significant between support for the death penalty amongst those with prejudicial attitudes in the South as compared to the non-South. Racially-prejudicial White people in the South are less likely to support the death penalty. This is not what one would predict if prejudice is shaping differential support in the South. However, again, this is an average in the post-turn period, rather than an estimate of change.

Table N2: Death penalty support as a function of prejudice and welfare support amongst White respondents

	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
South	0.030 (0.060)	0.0026 (0.022)		-0.017 (0.012)		-0.025 (0.019)
Prejudice	0.085*** (0.016)	0.10*** (0.018)				
Prejudice $\times$ South		-0.064* (0.028)				
Welfare support			-0.12*** (0.014)	-0.13*** (0.019)		
Welfare support $\times$ South				0.018 (0.023)		
Affirm. action					-0.19*** (0.017)	-0.19*** (0.021)
Affirm. action $\times$ South						0.0019 (0.024)
Homicide rate (W)	-0.0054 (0.0072)	0.0014 (0.0044)	-0.0079 (0.0089)	0.0029 (0.0043)	0.025** (0.0080)	0.0066 (0.0067)
Homicide rate (NW)	-0.0028 (0.0033)	-0.0023** (0.00075)	-0.0020 (0.0040)	-0.0015 (0.00092)	-0.00061 (0.0047)	-0.0018** (0.00070)
Race Sample	W-only	W-only	W-only	W-only	W-only	W-only
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control	✓	✓	✓	✓	✓	✓
Observations	15400	15400	10667	10667	2684	2684

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. Data are weighted using post-stratification census weights (Appendix E). . * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

O Full Results

This appendix presents the results from the main paper with the inclusion of all covariate parameter estimates. The omitted categories for the indicators are: female, NE region, city size below 20k, and no high school.

Table O1: Death penalty support as a function of race pre to post-1967 (Table 1 full)

	% Support Death Penalty	
	(1)	(2)
White	0.15*** (0.0098)	0.15*** (0.010)
White $\times$ Post	0.13*** (0.024)	0.13*** (0.024)
Male	0.098*** (0.0056)	0.098*** (0.0057)
Age	0.0060*** (0.0017)	0.0060*** (0.0017)
Age ²	-0.000051** (0.000017)	-0.000051** (0.000017)
Educ: some HS	-0.0068 (0.012)	-0.0072 (0.011)
Educ: HS grad	0.052** (0.018)	0.052** (0.018)
Educ: Some college+	-0.012 (0.024)	-0.012 (0.024)
City size: 25-50k	0.0040 (0.015)	0.0042 (0.015)
City size: 50-100k	0.0010 (0.016)	0.0019 (0.015)
City size: 100-500k	0.0034 (0.019)	0.0038 (0.019)
City size: 500k+	0.014 (0.013)	0.015 (0.013)
Region: Mid Atlantic	0.029*** (0.0036)	0.017 (0.032)
Region: E North Central	-0.010*** (0.0023)	-0.041 (0.052)
Region: W North Central	-0.043*** (0.0033)	-0.070 (0.040)
Region: S Atlantic	-0.037*** (0.0025)	-0.050 (0.051)
Region: E South Central	-0.023*** (0.0025)	-0.028 (0.064)
Region: Mountain	0.053*** (0.0051)	0.061** (0.024)
Region: Pacific	0.028*** (0.0042)	0.038 (0.029)
Homicide rate (W)		-0.0032 (0.0079)
Homicide rate (NW)		0.0019 (0.0026)
Year Period	1953-85	1953-85
Race Sample	W&B	W&B
Survey FE	✓	✓
Controls	✓	✓
Crime Control		✓
Observations	40089	40089

Notes: The above table presents estimates of equation 3. Standard errors are clustered at the region. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd= 0.48). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

Table O1 presents the results of Table 1. The magnitude of the race and racial interaction

Table O2: Death penalty support as a function of race and geography pre to post-1967 (Table 2 full)

	% Support Death Penalty					
	(1)	(2)	(3)	(4)	(5)	(6)
White	0.23*** (0.0098)	0.23*** (0.0099)			0.16*** (0.022)	0.15*** (0.021)
South	-0.081** (0.028)	-0.087** (0.028)	-0.096** (0.028)	-0.10*** (0.029)	-0.057 (0.046)	-0.065 (0.045)
South × Post	0.067** (0.024)	0.061* (0.029)	0.096*** (0.023)	0.088** (0.029)	-0.013 (0.047)	-0.019 (0.051)
White × South					-0.039 (0.025)	-0.037 (0.024)
White × Post					0.095** (0.027)	0.096** (0.028)
White × South × Post-1967					0.11*** (0.029)	0.11*** (0.029)
Male	0.097*** (0.0054)	0.098*** (0.0054)	0.11*** (0.0055)	0.11*** (0.0055)	0.097*** (0.0055)	0.098*** (0.0055)
Age	0.0059** (0.0018)	0.0060** (0.0018)	0.0057** (0.0020)	0.0057** (0.0019)	0.0061** (0.0018)	0.0061*** (0.0017)
Age ²	-0.000050** (0.000017)	-0.000051** (0.000017)	-0.000049** (0.000019)	-0.000050** (0.000019)	-0.000051** (0.000017)	-0.000052** (0.000017)
Educ: some HS	-0.0077 (0.012)	-0.0082 (0.012)	-0.00070 (0.015)	-0.0015 (0.015)	-0.0048 (0.012)	-0.0053 (0.012)
Educ: HS grad	0.051** (0.017)	0.051** (0.017)	0.057** (0.022)	0.057** (0.022)	0.053** (0.017)	0.053** (0.017)
Educ: Some college+	-0.011 (0.023)	-0.012 (0.024)	-0.0097 (0.030)	-0.011 (0.030)	-0.0091 (0.024)	-0.010 (0.024)
City size: 25-50k	0.0049 (0.016)	0.0032 (0.016)	0.010 (0.014)	0.0083 (0.015)	0.0067 (0.014)	0.0050 (0.014)
City size: 50-100k	0.0049 (0.012)	0.0016 (0.012)	0.0090 (0.011)	0.0045 (0.012)	0.0051 (0.013)	0.0018 (0.014)
City size: 100-500k	0.0028 (0.020)	0.00074 (0.020)	0.0024 (0.016)	-0.00056 (0.017)	0.0050 (0.019)	0.0029 (0.020)
City size: 500k+	0.020 (0.012)	0.017 (0.012)	0.019 (0.013)	0.015 (0.013)	0.020 (0.011)	0.017 (0.011)
Homicide rate (W)		0.0049 (0.0042)		0.0062 (0.0049)		0.0050 (0.0043)
Homicide rate (NW)		-0.0010 (0.00063)		-0.0012* (0.00064)		-0.0010 (0.00063)
Year Period	1953-85	1953-85	1953-85	1953-85	1953-85	1953-85
Race Sample	W&B	W&B	W-only	W-only	W&B	W&B
Survey FE	✓	✓	✓	✓	✓	✓
Controls	✓	✓	✓	✓	✓	✓
Crime Control		✓		✓		✓
Observations	40089	40089	35749	35749	40089	40089

Notes: The above table presents OLS estimates of equation 4. Standard errors are heteroskedastic robust to regional clustering. Data are weighted using post-stratification census weights (Appendix E). Average death penalty support over the above analysis period is 0.64 (sd= 0.48). * $p < 0.1$, ** $p < 0.05$, *** $p < 0.01$

are striking. In magnitude, there is no other predictor that is as strong—White respondents are on average approximately 25 percentage points more likely to support the death penalty than Black respondents. The magnitude of the post-1967 difference (9-12 percentage points) is similar in magnitude to relationship between identifying as male and support for the death penalty (men are 9 percentage points more likely to support the death penalty). There is no statistically significant nor substantively meaningful role for regional crime in punitive attitudes.

Table O2 presents the results of Table 2. Consistently men are more supportive of the death penalty across the specifications in magnitude that is on par with the racial and regional variation. For example, in model 5, the differential post-1967 punitiveness for White respondents in the South is 9.7 percentage points, effectively the same as the general

9.7 percentage point difference between men and women. No factor is as important as race (15-18 percentage points). Finally, it's worth noting that regional violent crime is negatively related to support for the death penalty.

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